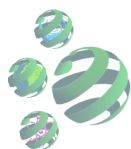


**ALTA VAN DYK ENVIRONMENTAL CONSULTANTS (PTY) LTD**

**Project Reference Number: 1074427**

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# **SIBANYE-STILLWATER: WESTERN PLATINUM LIMITED**

**COMMENTS AND RESPONSE REPORT:  
SCHAAPKRAAL AND ZWARTKOPPIES  
PROSPECTING RIGHT INCORPORATION  
INTO MINING RIGHT**

**November 2024**



## PROJECT DETAILS

|                                                    |                                                                                                            |
|----------------------------------------------------|------------------------------------------------------------------------------------------------------------|
| <b>CLIENT NAME:</b>                                | SIBANYE-STILLWATER: WESTERN PLATINUM LIMITED                                                               |
| <b>PROJECT NAME:</b>                               | SCHAAPKRAAL AND ZWARTKOPPIES PROSPECTING RIGHT<br>INCORPORATION INTO WESTERN PLATINUM LIMITED MINING RIGHT |
| <b>REPORT DETAIL:</b>                              | COMMENTS AND RESPOSNE REPORT                                                                               |
| <b>ALTA VAN DYK CORPORATE<br/>GROUP SUBSIDIARY</b> | ALTA VAN DYK ENVIRONMENTAL CONSULTANTS (PTY) LTD                                                           |



|                            |                 |
|----------------------------|-----------------|
| <b>REPORT DATE:</b>        | November 2024   |
| <b>VERSION CONTROL:</b>    | VERSION 1       |
| <b>MAIN AUTHOR:</b>        | KIRTHI PERAMAUL |
| <b>REVIEWER:</b>           | REATA COLYN     |
| <b>TECHNICAL DIRECTOR:</b> | ALTA VAN DYK    |

The opinions expressed in this Report have been based on the information supplied to Alta van Dyk Environmental (Pty) Ltd ("AvDE"), a subsidiary of Alta van Dyk Corporate Group ("AvDCG"), by company officials. The opinions in this Report are provided in response to a specific request from company officials to do so. AvDCG has exercised all due care in reviewing the supplied information. Whilst AvDCG has compared key supplied data with expected values, the accuracy of the results and conclusions from the review are entirely reliant on the accuracy and completeness of the supplied data. AvDCG does not accept responsibility for any errors or omissions in the supplied information and does not accept any consequential liability arising from commercial decisions or actions resulting from them. Opinions presented in this report apply to the site conditions and features as they existed at the time of AvDCG's investigations, and those reasonably foreseeable. These opinions do not necessarily apply to conditions and features that may arise after the date of this Report, about which AvDCG had no prior knowledge nor had the opportunity to evaluate.

**APPROVED BY:** ALTA VAN DYK / REATA COLYN

**SIGNATURE:**





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## 1. INTRODUCTION

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This Comments and Responses Report (CRR) captures the comments and issues raised by Interested and Affected Parties (I&APs) during the pre-application engagement for the proposed project.

This is a dynamic document and will be continuously updated during the key stages of the Basic Assessment Process to report back on methods of notification and comments raised and the responses provided.

The necessity for the CRR is based on Regulation 44 of the National Environmental Management Act's (NEMA) Environmental Impact Assessment (EIA) Regulations of 2014 (as amended).

Table 1 and Table 2 indicates the name of the I&AP, their organization, the date of the receipt of the comments, their communication methods well as the response of Alta van Dyk Environmental Consultants (Pty) Ltd to the comment. This report contains all comments that have been received to date on the project.

TABLE 1: PRE-CONSULTATION COMMENTS AND RESPONSES

| Nr.                     | Organisation/Commentator                                                            | Comment                                                                                                                                                                                                                                                                                                                                                   | Date         | Source     | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|-------------------------|-------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Pre-Consultation</b> |                                                                                     |                                                                                                                                                                                                                                                                                                                                                           |              |            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 1                       |    | Further to the notice issued by yourselves for environmental authorisations on farm Schaapkraal 292 JQ, we hereby request more information on the proposed project, to register as an interested and affected party as well as engage with you via the mining subcommittee of the Association. You may direct all correspondence using this email address | 09 July 2024 | Email      | <p>Thank you very much for your email below. The content has been acknowledged.</p> <p>Sibanye Stillwater Western Platinum Limited (WPL) has a Prospecting Right in place on various properties on the Farms Zwartkoppies and Schaapkraal. Kindly refer to the attached Property Map which provides details of the properties.</p> <p>It is the intention of Sibanye Stillwater Western Platinum Limited, to apply to the Department of Mineral Resources and Energy to include the Prospecting Right Area (as shown on the Attached Map) into their WPL Mining Right (NW30/5/1/2/2/106 MR).</p> <p>The proposal is for Sibanye Stillwater Western Platinum Limited (WPL) to undertake underground mining in these areas, as Mining extraction from the K4 Shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal and Zwartkoppies Prospecting Right area is conceptually proposed to start in 2038 (underground mining).</p> <p>Alta van Dyk Environmental Consultants (Pty) Ltd has been appointed as the independent Environmental Assessment Practitioner to undertake the Environmental Authorisation and Public Participation Process.</p> <p>We can avail ourselves for a teams (online) meeting whereby we can discuss the proposed project further with you.</p> |
| 2                       |  | Indicated that a BID was provided to her, however she would like more information on the project and if the information can be relayed in Afrikaans.                                                                                                                                                                                                      | 09 July 2024 | Telephonic | <p>Tans besit Sibanye-Stillwater prospekteer regte vir Platinum op die plase Schaapkraal en Zwartkoppies.</p> <p>Volgens die Mineraal Wet moet Sibanye nou aansoek doen vir die Mineraal regte anders verloor hulle die regte in die nabye toekoms wanneer nie prospekteer reg verval (kan net geldig wees vir 5 jaar met n verdere hernuwing van nog 5 jaar).</p> <p>Die mineral rif is gelee baie diep onder die grond wat beteken dat daar minimaal versteuring gaan wees bogrond wanneer die myn in die toekoms gemyn gaan word.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

| Nr. | Organisation/Commentator | Comment | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
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|     |                          |         |      |        | <p>'n Omgewings Goedkeuring is nodig as part van die aansoek vir die omskakeling van Prospekter Regte na Mineraal Regte toe. Hierdie Omgewings goedkeurings proses is wat ons as omgewings konsultante tans onderneem.</p> <p>Soos wat ons dit tans vestaan, is daar geen onmiddellike beplanning om nou dadelik hierdie stuk te myn nie. Die myn is ook beplan om baie diep ondergrond te wees oor hoe diep die rif le.</p> <p>Omdat daar minimaal verstering gaan wees bogrond, waar die benodigde infrastruktuur (ventilasie skagte) strategies geplaas gaan word, voorsien ons nie dat die myn beplan om grond uit te koop nie.</p> <p>Hierdie Ongewings Goedkeurings Proses is gefokus rondom die insluiting van die Prospekter Reg in die bestaande Mineraal Reg.</p> <p><b>Translation</b><br/>Sibanye-Stillwater currently owns prospecting rights for Platinum on the farms Schaapkraal and Zwartkoppies.</p> <p>According to the Mineral and Petroleum Resources Development Act, Sibanye must apply now for the Mineral rights otherwise they will lose the rights in the near future when the prospecting right expires (can only be valid for 5 years with a further renewal of another 5 years).</p> <p>The mineral reef is located very deep underground which means that there will be minimal disturbance to the ground when the mine is mined in the future.</p> <p>An Environmental Approval is required as part of the application for the conversion of Prospecting Rights to Mineral Rights. This Environmental approval process is what we as environmental consultants are currently undertaking.</p> <p>As we currently know, there are no immediate plans to mine this piece right now. The mine is also planned to be very deep underground due to how deep the reef lies.</p> <p>Because there will be minimal disturbance above ground, where the necessary infrastructure (ventilation shafts) will be</p> |

| Nr. | Organisation/Commentator | Comment | Date | Source | Response                                                                                                                                                                                                                                                                                                                       |
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|     |                          |         |      |        | <p>strategically placed, we do not foresee the mine planning to buy out land.</p> <p>This Environmental Approvals Process is focused around the inclusion of the Prospecting Right in the existing Mineral Right.</p> <p>I hope this sheds further light on your question and the information package we delivered to you.</p> |

TABLE 2: DRAFT BASIC ASSESSMENT PHSE

| Nr.                                 | Organisation/Commentator                                                                                        | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                          | Date                   | Source                           | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
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| <b>Draft Basic Assessment Phase</b> |                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                        |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>Authorities</b>                  |                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                        |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 1                                   | Department of Mineral Recourses and Energy (DMRE)<br>Linah Tshisevhe                                            | <p>Regulation 29 is applicable to the application as an amendment is being undertaken. The application form should clearly state that this amendment is undertaken in terms of Regulation 29 and will not change the scope of the Environmental Authorization.</p> <p>Consultation must be undertaken with Kudu Granit and Red Graniti. Eg send them an email to check if they require any further information other than what was provided.</p> | 3<br>September<br>2024 | Site Visit<br>Meeting<br>Minutes | <p>The updated application form was provided to the DMRE on the 26 September 2024 as well as enclosed with the Final Basic assessment Report.</p> <p>Consultation with both Kudu Granite and Red Graniti was undertaken, and proof has been included in Appendix C11 of the Final Basic Assessment Report.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 1                                   | North West Department of Economic Development, Environment, Conservation and Tourism<br><br>Mr Olebogeng Marobe | <p>1. The Draft Basic Assessment Report (BAR) and Environmental Management Programme report (EMPR) received for comment by the Department on 04 July 2024 refers.</p> <p>2. Following the review of the BAR and EMPPr, the Department has noted that:</p> <p>a. According to the North West Biodiversity Sector plan 2015 and screening tool, the proposed site has a very high</p>                                                              | 19 August<br>2024      | Email                            | <p>22 August 2024</p> <p>Thank you for your comments on the application. AvDE has noted that the Department is not in favour of the proposed activity.</p> <p>In terms of the project scope, no surface and underground mining infrastructure is proposed as part of this application. This application entails the incorporation of the Prospecting Right into the WPL Mining Right due to the requirement of the MPRDA. Surface infrastructure and underground mining requires thorough investigation into site-specific conditions and are necessary to evaluate how the required mining and surface infrastructure might affect the environment. In the instance where no surface infrastructure is required, or underground mining will be taking place, the undertaking of project specific specialist studies would not alter the outcome or provide additional value as there are no components to be taken into consideration for impact quantification. The Draft Basic</p> |

| Nr. | Organisation/Commentator                                                      | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Date                            | Source        | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
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|     |                                                                               | <p>Terrestrial and Aquatic sensitivity.</p> <p>b. The proposed site is located in a Terrestrial Critical Biodiversity Area type 2 and Ecological Support Area type 1 &amp; 2 with Aquatic Critical Biodiversity Areas type 1 &amp; 2 towards the east of the proposed site where the Maretlwana and Sterkstroom river is located.</p> <p>3. Mining activities are actively discouraged in CBA's as it is an area that must be maintained in a natural or at least a semi-natural state in order to ensure the continued existence and functioning of species and ecosystems and the delivery of the ecosystem services.</p> <p>4. In this regard, this Department is not in favour of the proposed activity and requests more detailed information on the impact on the Biodiversity as a result of the proposed activity and mitigation measures in place to prevent the direct loss of biodiversity (eg loss of populations or habitat) locally and/or in the surrounding areas.</p> |                                 |               | <p>Assessment Report has provided a comprehensive description of the baseline environment of the proposed study area. This baseline environment will remain unchanged in the incorporation of the Prospecting Right into the Mining Right. There are no components identified to possibly cause an impact. Therefore, this process is deemed an administrative process in securing a Prospecting Right into a mining right as mining extraction from the K4 shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal prospecting area is conceptually considered to start in 2038 (14 years from now).</p> <p>Attached to this email the Biodiversity Action and Management Plan undertaken by Agreenco (2015). This biodiversity report was submitted as part of the Prospecting Right Application which was approved by the DMRE.</p> |
| 2   | <p>South African Heritage Resources Agency (SAHRA)</p> <p>Nokusho Ngobeni</p> | <p>A Draft Basic Assessment Report (DBAR) has been submitted in terms of the National Environmental Management Act, 1998 (NEMA) and the EIA Regulations for activities that trigger the Mineral and Petroleum Resources Development Act, 2002 (MPRDA)(As amended).The proposal is for Sibanye Stillwater Western Platinum Limited (WPL) to undertake</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <p>5<br/>September<br/>2024</p> | <p>SAHRIS</p> | <p>01 October 2024</p> <p><b><u>Project Scope</u></b></p> <p>No surface and underground mining infrastructure is proposed as part of this application. This application entails the incorporation of the Prospecting Right into the WPL Mining Right due to the requirement of the MPRDA. A Basic Assessment process has been undertaken to support</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
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|     |                          | <p>underground mining in these areas, as Mining extraction from the K4 Shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal and Zwartkoppies Prospecting Right area is conceptually proposed to start in 2038 (underground mining).</p> <p>Dr. Pistorius J.C.C. has been appointed to provide heritage specialist input as part of the EA process in terms of section 24(4)b(iii) of NEMA and section 38(8) of the National Heritage Resources Act, Act 25 of 1999 (NHRA).</p> <p>Pistorius, J.C.C. 2012. A SURVEY FOR HERITAGE RESOURCES IN THE LONMIN MARIKANA MINE LEASE AREA IN THE BRITS (MADIBENG) AND RUSTENBURG (BAFOKENG) DISTRICTS IN THE NORTHWEST PROVINCE.</p> <p>The author undertook surveys on the WPL Mining Right Area and the Schaapkraal and Zwartkoppies prospecting right area. The survey that was done for Schaapkraal 292JQ resulted in the geo-referencing and mapping of the stone walled sites (SC01-SC26), graveyards (GY17, GY18) in the Lonmin Project Area.</p> <ul style="list-style-type: none"> <li>Site SC01 situated along the western banks of the river and is also associated with a large graveyard</li> <li>GY17 is an informal graveyard and contains approximately 6-8 graves. All the graves are covered with piles of stone.</li> <li>GY18, the number of graves in the graveyard could not be established due to dense vegetation</li> </ul> <p>Mitigation</p> <ul style="list-style-type: none"> <li>Stone tools, Late Iron Age sites and Historical remains and sites can only be investigated by archaeologists who are</li> </ul> |      |        | <p>the incorporation of the Prospecting Right Area into the Mining Right Area. The activities applied for in terms of the NEMA EIA Regulations are as follows:</p> <ul style="list-style-type: none"> <li>Listing Notice 1: Activity 21D - Any activity including the operation of that activity which requires an amendment or variation to a right or permit in terms of section 102 of the Mineral and Petroleum Resources Development Act, as well as any other applicable activity contained in this Listing Notice or in Listing Notice 3 of 2014, required for such amendment.</li> </ul> <p>This process is deemed an administrative process in securing a Prospecting Right into a mining right as mining extraction from the K4 shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal prospecting area is conceptually considered to start in 2038 (14 years from now). This would be for underground mining which will be approximately 1.6km from the surface.</p> <p><b><u>Specialist Studies</u></b></p> <p>Surface infrastructure and underground mining requires thorough investigation into site-specific conditions and are necessary to evaluate how the required mining and surface infrastructure might affect the environment. In the instance where no surface infrastructure is required, or underground mining will be taking place, the undertaking of project specific specialist studies would not alter the outcome or provide additional value as there are no components to be taken into consideration for impact quantification. The Draft Basic Assessment Report has provided a comprehensive description of the baseline environment of the proposed study area. This baseline environment will remain unchanged in the incorporation of the Prospecting Right into the Mining Right. There are no components identified to possibly cause an impact as the process is deemed an administrative process.</p> <p>Two years prior to the undertaking of mining (2036), Sibanye Stillwater will commence with the pre-feasibility studies in order to confirm the mine plan and production profile for the Schaapkraal mining block. During this study period, all surface infrastructure requirements such as ventilation shafts will be determined. Once the mine plan has been finalised and surface infrastructure confirmed, a regulatory approval process will be undertaken in support of these activities. During this period a Heritage Impact Assessment will be undertaken supporting the feasibility mine and infrastructure plan as to quantify possible impacts.</p> <p><b><u>The Effects of Underground Mining and Sinkholes</u></b></p> |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
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|     |                          | <p>accredited with ASAPA and only after the necessary permission has been obtained from SAHRA</p> <ul style="list-style-type: none"> <li>Graveyards can be demarcated with brick walls or with fences. Conserving graveyards in situ in mining areas create the risk and responsibility that they may be damaged, accidentally, that the mine remains responsible for their future unaffected existence, maintenance and that controlled access must exist for any relatives or friends who wish to visit the deceased.</li> <li>Graveyards can also be exhumed and relocated. The exhumation of human remains and the relocation of graveyards are regulated by various laws, regulations and administrative procedures. This task is undertaken by forensic archaeologists or by reputed undertakers who are acquainted with all the administrative procedures and relevant legislation that have to be adhered to whenever human remains are exhumed and relocated. This process also includes social consultation with a 60 days statutory notice period for graves older than sixty years. Permission for the exhumation and relocation of human remains have to be obtained from the descendants of the deceased (if known), the National Department of Health, the Provincial Department of Health, the Premier of the Province and the local police</li> </ul> <p>General Mitigation</p> <ul style="list-style-type: none"> <li>Heritage awareness</li> </ul> <p>SAHRA, Development Applications Unit (DAU) is unable to provide a comment on this case, as Heritage Impact Assessment report is outdated and must comply with the SAHRA Minimum Standards for Heritage Specialist Studies in terms of Section 38</p> |      |        | <p>A sinkhole is a hole in the ground that forms when water dissolves surface rock. Often, this surface rock is limestone, which is easily eroded, or worn away, by the movement of water. People can create sinkholes when building roads or other types of construction. Altering land in these ways can weaken the underlying rock and make it more susceptible to sinkholes. Sinkholes vary from shallow holes about one meter deep, to pits more than 50 meters deep. The ore bodies that will eventually become mining targets are located between 1.3 and 1.7km beneath the surface of Schaapkraal. There is no plan to disturb the surface or sink a new shaft to reach these areas as the mine will utilize existing underground infrastructure to access the ore bodies. Even when mining and creating voids below surface, the rock types mined here are igneous rocks which are very competent and not altered in any way like limestone. Rock engineering strategies are currently effectively employed and will ensure that no subsidence or slumping takes place. Therefore, the probability of mining induced sinkholes are unlikely due to the depth of mining and the competent rock types below the surface. Mining has taken place in the area since the 1930s with no record of any sinkholes forming.</p> <p><b><u>Heritage Impact Assessment</u></b></p> <p>The Heritage Report provided to SAHRA was as per the request made on the 20th August 2024, that the HIA in support of the Prospecting Right application be submitted. The Application for the Prospecting Right was undertaken in 2018. The Heritage Impact Assessment undertaken by Dr Julius CC Pistorius in 2012 was then submitted to SAHRA.</p> <p><b><u>Interim Comment by SAHRA</u></b></p> <p>As per the interim comment provided by SAHARA dated 5 September 2024</p> <ul style="list-style-type: none"> <li>An HIA to be undertaken, the HIA must clarify which heritage resources are still present in the development area. The HIA report must also assess whether or not the current proposed activities will/may impact on the existing heritage resources.</li> <li>The applicant is advised to extend the EA process in terms of section 19(1)b of the NEMA EIA regulations in order to address this comment.</li> </ul> <p><b><u>Way forward</u></b></p> |

| Nr. | Organisation/Commentator                                                      | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Date           | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|-----|-------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|--------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                                                                               | <p>of the National Heritage Resources Act (No. 25 of 1999). The authors declaration of independence, CV and the survey tracklog must be included in the HIA report. The HIA must clarify which heritage resources are still present in the development area. The HIA report must also assess whether or not the current proposed activities will/may impact on the existing heritage resources.</p> <p>The applicant is advised to extend the EA process in terms of section 19(1)b of the NEMA EIA regulations in order to address this comment. Further comments will be issued upon receipt of the above requested reports.</p> <p>Should you have any further queries, please contact the designated official using the case number quoted above in the case header.</p> |                |        | <p>The need for the HIA has been included in the EMPr that formed part of the Basic Assessment Report. This study will be undertaken once the mine plan and surface infrastructure has been identified and confirmed.</p> <p>Please advise if SAHRA is aligned with this recommendation based on the detailed project information provided on this email. Will SAHRA be able to re-consider the comments provided?</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 3   | <p>South African Heritage Resources Agency (SAHRA)</p> <p>Nokusho Ngobeni</p> | <p>Regarding the motivation letter, please note that it must be authored by a qualified heritage specialist for acceptance.</p> <p>Could you kindly arrange for this requirement to be met?</p> <p>The comment will be issued upon receipt of the revised letter.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 7 October 2024 | Email  | <p>A motivation letter compiled by Dr Julius Pistorius was submitted to SAHRA via SAHRIS on the 16 October 2024. The content of the letter is provided below:<br/>SAHRA Case ID: 23098</p> <p><u>Cultural and Heritage Background</u></p> <p>Heritage information available on Schaapkraal 292JQ is derived from a heritage register compiled for Lonmin during 2012. However, this information again was extracted from earlier archaeological surveys done prior to 2000 for Kudu and Marikana Granite compiled in a report entitled: 'Pistorius, J.C.C. 2000. Archaeological survey and assessment of granite mining areas on the farms Tweedepoort 283JQ, Boschpoort 284JQ, Beestkraal 290JQ, Elandsheuvel 282JQ, Nooitgedacht 287JQ, Nooitgedacht 289JQ and Schaapkraal 292JQ in the Rustenburg District of the Central Bankeveld. Unpublished report for Kudu and Marikana Granite'.</p> <p>Consequently, the information predates 2000 and is as old as 25 years and done in a time when heritage reports were not yet standardized and the heritage fraternity starting with the implementation of the National Heritage Resources Act (No 25 of 1999) after its promulgation.</p> <p>The farm Schaapkraal 292JQ covers a large survey area consisting of black turf soil, mostly flat, but with a series of low rising syenite kopjes running across the farm. The base lines of most of these hills are covered</p> |

| Nr. | Organisation/Commentator | Comment | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
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|     |                          |         |      |        | <p>with extensive remains of Late Iron Age stone walled sites dating from 1640 to 1850. Most of the hills were severely damaged and several destroyed by granite mining activities. Most of these settlements are of high significance. The summary of the survey concluded that 31 Late Iron Age settlements were mapped and classified according to the following categories of preservation:</p> <p>Destroyed: 3 sites<br/> Damaged: 8 sites<br/> Unaffected: 21 sites</p> <p>Suggested further Phase 2 investigations: 19 sites (high number because of high significance).</p> <p>These sites include some of the oldest Sotho (not Tswana) settlements north of the Lekoa (Vaal River) in the Rustenburg district. The significance of the remaining sites (damaged and unaffected) has been elevated because thirty percent of the sites have been destroyed or damaged. These settlements serve as proof that the Sotho from the Free State are derived from the Rustenburg area, a theory currently under debate and which I have augmented with new information advanced in a manuscript on the Tswana which is on its way to the press.</p> <p><u>Project Scope</u></p> <p>No surface and underground mining infrastructure is proposed as part of this application. This application entails the incorporation of the Prospecting Right into the Western Platinum Limited (WPL) Mining Right due to the requirement of the Mineral and Petroleum Resources Development Act 28 of 2002 (MPRDA). A Basic Assessment process has been undertaken to support the incorporation of the Prospecting Right Area into the Mining Right Area. The activities applied for in terms of the NEMA EIA Regulations are as follows:</p> <ul style="list-style-type: none"> <li>• Listing Notice 1: Activity 21D - Any activity including the operation of that activity which requires an amendment or variation to a right or permit in terms of section 102 of the Mineral and Petroleum Resources Development Act, as well as any other applicable activity contained in this Listing Notice or in Listing Notice 3 of 2014, required for such amendment.</li> </ul> <p>This process is deemed an administrative process in securing a Prospecting Right into a mining right as mining extraction from the K4 shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal prospecting area is conceptually considered to start in 2038 (14 years from now). This would be for underground mining which will be approximately 1.6km from the surface.</p> <p><u>Heritage Specialist Recommendations</u></p> |

| Nr. | Organisation/Commentator                                                      | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Date            | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
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|     |                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                 |        | <p>I would recommend that a full-flexed Phase I HIA study be conducted by an archaeologist acquainted with the Late Iron Age of Rustenburg and the north-west whenever mining activities, even if limited to underground mining, be undertaken on Schaapkraal 292JQ in the future. This would be once feasibility studies, and a mine plan has been completed.</p> <p>In addition, this recommendation is to be included in the Basic Assessment Report and Environmental Management Program for the Schaapkraal and Zwartkoppies Prospecting Right incorporation into the Western Platinum Mining Right (MR 106), Department of Mineral Resources and Energy (DMRE) Reference Number: NW30/5/1/2/2/106 MR.</p> <p>The Phase I HIA will take several weeks to complete as it would be necessary to determine whether all the settlements still exist or if more sites can be identified. However, next to the completion of the Phase I HIA study I recommend that mitigation work as recommended in the original survey report be done which could be implemented as part of a phased program, thus the work can be stretched over a few consecutive years during which one or two settlements per year can be documented and excavated as part of Schaapkraal's Environmental Management Program.</p> |
| 4   | <p>South African Heritage Resources Agency (SAHRA)</p> <p>Nokusho Ngobeni</p> | <p>A Draft Basic Assessment Report (DBAR) has been submitted in terms of the National Environmental Management Act, 1998 (NEMA) and the EIA Regulations for activities that trigger the Mineral and Petroleum Resources Development Act, 2002 (MPRDA)(As amended).The proposal is for Sibanye Stillwater Western Platinum Limited (WPL) to undertake underground mining in these areas, as Mining extraction from the K4 Shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal and Zwartkoppies Prospecting Right area is conceptually proposed to start in 2038 (underground mining).</p> <p>Dr. Pistorius J.C.C. has been appointed to provide heritage specialist input as part of the EA process in terms of section 24(4)b(iii) of NEMA and section 38(8) of the National Heritage Resources Act, Act 25 of 1999 (NHRA).</p> <p>Pistorius, J.C.C. 2012. A SURVEY FOR HERITAGE RESOURCES IN THE LONMIN MARIKANA MINE LEASE AREA IN THE BRITS</p> | 18 October 2024 | SAHRIS | <p>The final comment issued by SAHRA has been acknowledged by Alta van Dyk Environmental Consultants and included in the EMPr.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Date | Source | Response |
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|     |                          | <p>(MADIBENG) AND RUSTENBURG (BAFOKENG) DISTRICTS IN THE NORTHWEST PROVINCE.</p> <p>The author undertook surveys on the WPL Mining Right Area and the Schaapkraal and Zwarkoppies prospecting right area</p> <p>The survey that was done for Schaapkraal 292JQ resulted in the geo-referencing and mapping of the stone walled sites (SC01-SC26), graveyards (GY17, GY18) in the Lonmin Project Area.</p> <ul style="list-style-type: none"> <li>• Site SC01 situated along the western banks of the river and is also associated with a large graveyard</li> <li>• GY17 is an informal graveyard and contains approximately 6-8 graves. All the graves are covered with piles of stone.</li> <li>• GY18, the number of graves in the graveyard could not be established due to dense vegetation</li> </ul> <p>Mitigation</p> <ul style="list-style-type: none"> <li>• Stone tools, Late Iron Age sites and Historical remains and sites can only be investigated by archaeologists who are accredited with ASAPA and only after the necessary permission has been obtained from SAHRA</li> <li>• Graveyards can be demarcated with brick walls or with fences. Conserving graveyards in situ in mining areas create the risk and responsibility that they may be damaged, accidentally, that the mine remains responsible for their future unaffected existence, maintenance and that controlled access must exist for any relatives or friends who wish to visit the deceased.</li> </ul> |      |        |          |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Date | Source | Response |
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|     |                          | <ul style="list-style-type: none"> <li>Graveyards can also be exhumed and relocated. The exhumation of human remains and the relocation of graveyards are regulated by various laws, regulations and administrative procedures. This task is undertaken by forensic archaeologists or by reputed undertakers who are acquainted with all the administrative procedures and relevant legislation that have to be adhered to whenever human remains are exhumed and relocated. This process also includes social consultation with a 60 days statutory notice period for graves older than sixty years. Permission for the exhumation and relocation of human remains have to be obtained from the descendants of the deceased (if known), the National Department of Health, the Provincial Department of Health, the Premier of the Province and the local police</li> </ul> <p>General Mitigation</p> <ul style="list-style-type: none"> <li>Heritage awareness</li> </ul> <p>In an Interim Comment issued on 25/09/2024, SAHRA requested an updated HIA to include the authors declaration of independence, CV and the survey tracklog. Since the issuing of the Interim Comment, a motivation letter noting that the application is for the inclusion of the Schaapkraal and Zwartkoppies</p> <p>Prospecting Right Area into the existing SS WPL Mining Right area only, no infrastructure or associated mining activities are being anticipated at this time or applied for as part of this application and as such additional surface disturbance (at this time) has been deemed insignificant to non-existent.</p> <p>Mining extraction from the K4 Shaft mining block is expected to mature in 2040, and thus</p> |      |        |          |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Date | Source | Response |
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|     |                          | <p>access into the Schaapkraal and Zwartkoppies Prospecting Right area is conceptually proposed to start in 2038. Since underground mining is only proposed in the next 14 years, Sibanye Stillwater has not yet compiled a site layout for surface infrastructure. The intention is to first ensure that the Prospecting Right Area has been included in the Mining Right, prior to the planning of the surface infrastructure. Therefore, the need for the HIA has been included in the EMPr that formed part of the Basic Assessment Report. The study will be undertaken once the mine plan and surface infrastructure has been identified and confirmed.</p> <p><i>Pistorius, J.C.C. 2024. MOTIVATION FOR A PHASE I HERITAGE IMPACT ASSESSMENT AND MITIGATION OF LATE IRON AGE SETTLEMENTS ON SCHAAPKRAAL 292JQ WITH IMPLEMENTATION OF FUTURE UNDERGROUND MINING ACTIVITIES</i></p> <p>The letter recommends that a full-flexed Phase I HIA study be conducted by an archaeologist acquainted with the Late Iron Age of Rustenburg and the north-west whenever mining activities, even if limited to underground mining, be undertaken on Schaapkraal 292JQ in the future. This would be once feasibility studies, and a mine plan has been completed. In addition, this recommendation is to be included in the Basic Assessment Report and Environmental Management Program for the Schaapkraal and Zwartkoppies Prospecting Right incorporation into the Western Platinum Mining Right (MR 106), Department of Mineral Resources and Energy (DMRE) Reference Number: NW30/5/1/2/2/106 MR.</p> <p><b>Final Comment</b></p> |      |        |          |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Date | Source | Response |
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|     |                          | <p>The following comments are made as a requirement in terms of section 38(8) of the NHRA in the format provided in section 38(4) of the NHRA and must be included in the Final BAR and EMPr:</p> <ul style="list-style-type: none"> <li>• 38(4)a – The SAHRA Development Applications Unit (DAU) has no objections to the proposed development;</li> <li>• 38(4)b – The recommendations of the specialists are supported and must be adhered to. Further additional specific conditions are provided for the development as follows: <ul style="list-style-type: none"> <li>○ Once the mine plan and surface infrastructure has been identified and confirmed, an archaeologist must survey the area and compile an HIA to be submitted to SAHRA for review and comment prior to construction. No construction activities may occur without comment from SAHRA;</li> <li>○ SAHRA reserves the right to object to the development and/or to impose additional conditions on the development based on the above requested report;</li> <li>○ 38(4)c(i) – If any evidence of archaeological sites or remains (e.g. remnants of stone-made structures, indigenous ceramics, bones, stone artefacts, ostrich eggshell fragments, charcoal and ash concentrations), fossils or other categories of heritage resources are found during the proposed development, SAHRA DAU (Natasha Higgitt 021 202 8660) must be alerted as per section 35(3) of the</li> <li>○ NHRA. Non-compliance with this section of the NHRA is an offense</li> </ul> </li> </ul> |      |        |          |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Date | Source | Response |
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|     |                          | <p>in terms of section 51(1)e of the NHRA and item 5 of the Schedule;</p> <ul style="list-style-type: none"> <li>○ 38(4)c(ii) – If unmarked human burials are uncovered, the SAHRA DAU (Natasha Higgitt 021 202 8660) must be alerted immediately as per section 36(6) of the NHRA. Non-compliance with this section of the NHRA is an offense in terms of section 51(1)e of the NHRA and item 5 of the Schedule;</li> <li>○ 38(4)d – See section 51(1) of the NHRA regarding offences;</li> <li>○ 38(4)e – The following conditions apply with regards to the appointment of specialists:</li> <li>○ 1) If heritage resources are uncovered during the course of the development, a professional archaeologist or palaeontologist, depending on the nature of the finds, must be contracted as soon as possible to inspect the heritage resource. If the newly discovered heritage resources prove to be of archaeological or palaeontological significance, a Phase 2 rescue operation may be required subject to permits issued by SAHRA;</li> <li>○ The Final BAR must be submitted to the SAHRIS application for record purposes;</li> <li>○ The decision regarding the EA application must be submitted to the SAHRIS application for record purposes.</li> </ul> <p>Should you have any further queries, please contact the designated official using the case number quoted above in the case header.</p> |      |        |          |

| Nr. | Organisation/Commentator                           | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Date           | Source | Response                                                                                                                                                                       |
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| 5   | Rustenburg Local Municipality<br>Kelebogile Mekgoe | <p><u>DRAFT BASIC ASSESSMENT REPORT AND ENVIRONMENTAL MANAGEMENT PROGRAMME REPORT- THE SCHAAPKRAAL AND ZWARTKOPPIES PROSPECTING RIGHT INCORPORATION INTO THE WESTERN PLATINUM (PTY) LTD MINING RIGHT. RUSTENBURG LOCAL MUNICIPALITY</u></p> <p>Your application as referred to above has reference.</p> <p>The Unit: Integrated Environmental Management acknowledges the receipt of the application for draft Basic Assessment Report and Environmental Management Programme Report for the proposed inclusion of the Schaapkraal and Zwartkoppies prospecting right into the Western Platinum Limited (WPL) mining right. The proposed application area will be approximately 4 179, 171 hectares. Some portions of the farms are privately owned, and others are owned by Sibanye- Stillwater Marikana Operations, which is split into Western Platinum Limited (WPL) and Eastern Platinum Limited (EPL).</p> <p>Sibanye-Stillwater intends to acquire the mineral rights of the Schaapkraal and Zwartkoppies area, so as to ensure continued mining activities. The application is for the inclusion of the Schaapkraal and Zwartkoppies prospecting right area into the existing Sibanye Stillwater WPL mining right area. No surface infrastructure or associated mining activities will be undertaken.</p> <p>Schaapkraal and Zwartkoppies prospecting right will sustain the long-term viability of the existing WPL mining operations, which will be likely be an underground mining, proposed to start in 2038.</p> | 14 August 2024 | Email  | The comment has been acknowledged by Alta van Dyk Environmental and included in the Comments and Response Report for consideration by the DMRE in the decision-making process. |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Date | Source | Response |
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|     |                          | <p>The prospecting right application is listed in terms of National Environmental Management Act, (NEMA, Act 107 of 1998), 07 April 2017, as amended. The prospecting right triggers listed activity, Listing Notice I (GNR 327), Activity 20: Any activity including the operation of that activity which requires an amendment or variation to a right or permit in terms of section 102 of the Mineral and Petroleum Resource Development Act, as well as any other applicable activity contained in this Listing Notice or in Listing Notice 3 of 2014, required for such amendment.</p> <p>During the site inspection undertaken by the Unit: Integrated Environmental Management, and the Environmental Assessment Practitioner (EAP), the following were noted:</p> <ul style="list-style-type: none"> <li>• The proposed application area is covered with natural vegetation, grassland and thornveld, and no infrastructure on site.</li> <li>• Large portion of the study area has been transformed by impacts of commercial agriculture (sunflower plantations)</li> </ul> <p>The proposed application area is used mostly for livestock grazing and crop farming, and there are other mining activities in the surrounding area. During the undertaking of the mining related activities, the applicant will be responsible for compliance with the provisions for duty of care and remediation of environmental damage in accordance with Section 28 of National Environmental Management Act, 1998 (Act No. 107 of 1998), as amended.</p> <p>In light of the above and the information submitted, please note that the Unit: Integrated Environmental Management support the proposed inclusion of the Schaapkraal and Zwartkoppies prospecting right into the Western Platinum Limited (WPL) mining right.</p> |      |        |          |

| Nr.                                    | Organisation/Commentator                                                          | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Date           | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
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| <b>Interested and Affected Parties</b> |                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 6                                      |  | <p>I'm so heartbroken to hear about this project as I bought my farm 2021 I then left the county came back 2022 as a soldier when I came back my house is vandalised by K4 shaft.</p> <p>I then launched a complain while it was only smaller cracks but due to the continuous blasting my house keeps on being more affected. The investigation team came to verify while they were still investigating the house was worse.</p> <p>The investigation team came to conclusion saying house was vandalised by natural resources I asked a question what type and when we're forced to accept and digest the report that was not making sense and biased by the investigating team they promised to come and revisit my farm even today.</p> <p>I started doing my own investigation and found out that even some houses around Marikana RDP that are near the same K4 shaft have the same cracks like mine.</p> <p>Currently my house can fall at any time and cause more fatal cases I opened case for this as I have a proof that even if your company is saying our houses especially my farm there is prima facie cases that K4 Shaft also affected poor RDP house near it you can get a report from MR Legoale.</p> <p>So in short I'm here by requesting the Team including you to come and look at my house maybe you will understand what we are going through as if the house I bought 2021 was that</p> | 12 August 2024 | Email  | <p>According to Western Platinum Records, the complaint was received via a whatsapp message on 28 November 2023. The issues raised were then recorded and managed in line with Sibanye Stillwater's grievance mechanism procedure which includes investigation and presenting the outcome to the complainants.</p> <p>Following the receipt of the complaint, the investigation process was followed to establish the extent of the damage to the houses, blasting schedules, impact of movements of tremors, as-built state and condition structural assessment. A comprehensive report presenting the findings of the evaluation of surface infrastructure and blast analysis was undertaken. Subsequent to the finalisation of the report, the report was then presented to you and other landowners on 10 April 2024 at the Mooinooi Community Engagement Department.</p> <p>In summary, the following was presented:</p> <ul style="list-style-type: none"> <li>• All the farmers reported tremors/ground vibrations between 14h00 and 16h00 on an ad hoc basis. Typical blasting times at K4 are later than 17h00 and blasts are initiated every day.</li> <li>• Some farmers report surface air pressure differentials (due to blast events) which cannot be related to the K4 underground blasts.</li> <li>• Most farmers indicate that tremors were being felt as far back as early 2021. K4 only started blast activities, on a small scale, in 2022.</li> <li>• Based on the Peak Particle Velocity (PPV) analyses, the distance of the Swartkoppies farms to K4, the geotechnical inspection and the structural engineer's report, it is extremely unlikely that the damage at the Swartkoppies farms is as a result of blasting activities at K4.</li> </ul> <p>Based on the feedback provided by Sibanye Community Engagement and Development Unit, there was dissatisfaction from attendees on the outcome of the report. As a grievance mechanism procedure is followed by Sibanye, the next process is for the complainant to follow a mediation process if either of parties is not satisfied with the outcome of the issues management and resolution</p> |

| Nr.                         | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                | Date           | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |              |          |                  |                             |            |                 |
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|                             |                          | bad state as it is now I wasn't going to buy it so my case is valid.                                                                                                                                                                                                                                                                                                                                   |                |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |              |          |                  |                             |            |                 |
| 7                           | <div></div>              | <p>We tried to contact you on this number 012 940 9457 given. We received a SMS DATED 16 JULY 2024 regarding Sibanye prospecting right to be converted to a mining right.</p> <p>We are not aware of any prospecting right on our properties. Where is this report available? Can you please inform us which portions are affected as we were not consulted thus not applicable to our properties.</p> | 12 August 2024 | Email  | <p>12 August 2024<br/>Thank you for your email and making contact with Alta van Dyk Environmental Consultants. If you were unable to get a hold of me on 012 940 9457 you can alternatively contact me on 0722564733. Kindly share your contact details with Alta van Dyk Environmental so our database can be updated.</p> <p><b><u>Prospecting Right</u></b></p> <p>A Prospecting Right was issued by the Department of Mineral Resources and Energy (DMRE) on the 18 December 2018.</p> <p><b><u>Properties</u></b></p> <p>The potentially affected properties are provided below.</p> <p><b><u>Farm Schaapkraal No. 292 JQ</u></b><br/>Portions: 7, 8, 10, 12, 14, 15, 16, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 31, 32, Re of 17, Re of 2, Re of 4, and Re of 5.<br/><b><u>Farm Zwartkoppies No. 296 JQ</u></b><br/>Portions: 1, 4, 6, 9,10, 11, 14, 15, 21, 24, 26, 27, 28, 30, 36, 37, 39, 43, 44, 45, 54, 55, 58, 59, 60, 61, 62, 63, 64, 67, 70, 72, 73, 77, 78, 79, 80, 81, 82, 83, 84, and 85.</p> <p><b><u>Availability of the Draft Basic Assessment Report</u></b></p> <p>The Draft basic Assessment Report is currently available for public and Commentary Authority review from the 18 July until 19 August 2024. The report can be accessed electronically on the following website: <a href="https://altavandykenvironmental.co.za/">https://altavandykenvironmental.co.za/</a> or Click on <a href="http://ulwazi.datafree.co/z">http://ulwazi.datafree.co/z</a> for FREE now.</p> <p>Hard copies of the report are also available at the follow venues:</p> <table><tr><th>Public Place</th><th>Locality</th><th>Physical Address</th></tr><tr><td>Rustenburg<br/>Local Library</td><td>Rustenburg</td><td>153 Smit Street</td></tr></table> | Public Place | Locality | Physical Address | Rustenburg<br>Local Library | Rustenburg | 153 Smit Street |
| Public Place                | Locality                 | Physical Address                                                                                                                                                                                                                                                                                                                                                                                       |                |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |              |          |                  |                             |            |                 |
| Rustenburg<br>Local Library | Rustenburg               | 153 Smit Street                                                                                                                                                                                                                                                                                                                                                                                        |                |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |              |          |                  |                             |            |                 |

| Nr.                                           | Organisation/Commentator | Comment                                                                                                                                                                     | Date           | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                           |          |          |                                               |           |                                         |
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|                                               |                          |                                                                                                                                                                             |                |        | <table><tr><td>K4 Shaft Security Offices</td><td>Marikana</td><td>Marikana</td></tr><tr><td>Alta van Dyk Environmental Consultants Office</td><td>Midstream</td><td>9 Mount Sherman Cresent Midlands Estate</td></tr></table> <p><b>Public Participation</b><br/>Public Participation has been undertaken in line with Regulation 41 of the Environmental Impact Assessment Regulations 2014 (as amended). The Public Participation process is on-going, and the following has been undertaken this far:</p> <ol style="list-style-type: none"><li>1. A newspaper advertisement was placed in the Rustenburg Herald on the 17 July 2024 advertising the availability of the Draft BAR for public comment. The advert was placed in both English and Tswana.</li><li>2. Distribution of Background Information Document's ("BID") electronically via email to the competent authority, commenting authorities, adjacent landowners and all identified stakeholders was undertaken on 08 July 2024</li><li>3. Hand delivery of Background Information Documents on the 8 July 2024. These were to land occupiers within the project area. This was dependant on accessibility at the time of distribution.</li><li>4. Placing site notices on site and within close proximity of the site. Site notices were both in English and Tswana.</li><li>5. Sending out Notification Letters via registered mail to Landowners.</li><li>6. Notifying the ward councillor and the Schaapkraal Communal Property Association</li><li>7. Sending out emails to registered Interested and Affected parties notifying them on the availability of the Draft Basic Assessment Report</li><li>8. Sending out SMSs to registered Interested and Affected parties notifying them on the availability of the Draft Basic Assessment Report</li></ol> | K4 Shaft Security Offices | Marikana | Marikana | Alta van Dyk Environmental Consultants Office | Midstream | 9 Mount Sherman Cresent Midlands Estate |
| K4 Shaft Security Offices                     | Marikana                 | Marikana                                                                                                                                                                    |                |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                           |          |          |                                               |           |                                         |
| Alta van Dyk Environmental Consultants Office | Midstream                | 9 Mount Sherman Cresent Midlands Estate                                                                                                                                     |                |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                           |          |          |                                               |           |                                         |
|                                               |                          | No notifications received by email, no hand delivery, no registered mail. Just a Sms. We are staying on the farm and were not informed. No notifications on our properties. | 12 August 2024 | Email  | Attached to this email is the knock and Drop register. The Register was completed by Martinus Barnard with an email address of <a href="mailto:jentinabar123@gmail.com">jentinabar123@gmail.com</a> .                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                           |          |          |                                               |           |                                         |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Date           | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
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|     |                          | We were informed that only underground activities are going to take place which we can confirm as my house is starting to show cracks.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                |        | <p>Following the delivery of the Notification Letter, an email on the availability of the Draft report was sent to <a href="mailto:jentinabar123@gmail.com">jentinabar123@gmail.com</a>.</p> <p>Please do advise on the properties that you own, and we can update the database accordingly.</p> <p>The Draft Report is available for public comment until the 19 August 2024. You still have the opportunity to provide your comments.</p> <p>Regarding cracks on your house, please advise if you have raised a formal grievance with Sibanye Stillwater, which will allow the project team to respond accordingly</p>                                                                                                                                                                                                                                                                                                                                                                                                                              |
|     |                          | That is our neighbours and also family but nothing for us                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 12 August 2024 | Email  | <p>Various means were used to ensure that landowners and land occupiers were informed of the proposed project. The notification method was dependant on the contact details that Alta van Dyk Environmental had. Based on your previous email my understanding is that you were notified through the sms received.</p> <p>As explained, in my email below, please do advise on the properties that you own, and we can update the database accordingly. In addition, kindly provide a contact number.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 8   |                          | <p>Sibanye mine on farm Zwartkoppies 296 and Schaapkraal 292</p> <p>Underground water is polluted and drilled so that drinking water is not available. Happened on Marikana and water has to be bought expensively from municipality</p> <p>Miners with their cattle have already destroyed all infrastructure and destroyed buildings. Everything is stolen and more than 6-million-rand worth of damage has already been done to us. Police are not competent to prosecute criminals.</p> <p>The Gili project of Lonmin is a good example that has been ruined. We as landowners are plagued with the problems on a daily basis.</p> <p>Illegal Schaapkraal Community that was established under the false pretense of land</p> |                |        | <p><b><u>Groundwater Impact</u></b></p> <p>The mine operates in terms of an existing and valid Water Use License (WUL) issued by the Department of Water and Sanitation (DWS). Groundwater is monitored in line with the mine's groundwater monitoring programme and the WUL. There are currently 3 boreholes in the immediate vicinity of K4 shaft that are used for groundwater monitoring. Should there be instances where the water quality limits have been exceeded, scavenger boreholes (pumping and interception system) are used to capture contaminant plumes and prevent off-site migration. This is a suitable mitigation measure under section 19 of the National Water Act (Act 36 of 1998) which the mine may implement in the instances where there is a need for the control, containment and prevention of the movement of pollutants.</p> <p><b><u>Safety and Security</u></b></p> <p>While the company can exert control over access to its site and its employees during working hours, it is important to clarify that this</p> |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
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|     |                          | <p>restitution is supported by the former Lonmin mine granite works and DMR terrorize landowners and houses are burned down and destroyed. Landowners' lives are threatened and several times there has been an attack on MJ Barnard and exercised his family's life.</p> <p>This CPA also claims that the farm Schaapkraal 292 and Swartkoppies 296 belong to them but have been in the possession of the Barnard van Rensburg Botha Tribe since 1860. The mining industry provides a lot of work and contributes generously to the economy but also has a great security and health risk in which is fatal for the landowner. The mine shy's in its absence to accommodate and cooperate with the landowner especially with safety and health.</p> |      |        | <p>control does not extend to employee's personal activities outside of this area and these hours.</p> <p>Keeping cattle is not classified as a mining activity and falls within the role of personal endeavours. SS cannot regulate this specific activity as they pertain individual choices and responsibilities outside of employment contracts. As EAPs our focus is on assessing and mitigating environmental impacts as they pertain to project activities. We are not in the position to comment or assess the competencies of law enforcement agencies or their law enforcement practices. Issues relating to police competency and enforcement, it is best to consult the relevant legal or law enforcement authorities.</p> <p><b><u>Gilli Lonmin Kibbutza Farming Project</u></b></p> <p>It is essential to understand that each project should be assessed on its own merit and specific context especially in instances where a company (Lonmin) has been acquired by another organisation (Sibanye Stillwater). The new ownership brings forth differences in standards and operational guidelines. In addition to this even when projects are undertaken in the same company and may have similarities factors such as project scope, objectives, environmental conditions can differ significantly and using another project as a standard may not accurately reflect the unique opportunities and challenges related to each of the projects.</p> <p><b><u>Schaapkraal Communal Property Association (SCPA)</u></b></p> <p>The Prospecting Right Area falls on the following properties</p> <p><b><u>Farm Schaapkraal No. 292 JQ</u></b></p> <p>Portions: 7, 8, 10, 12, 14, 15, 16, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 31, 32, Re of 17, Re of 2, Re of 4, and Re of 5.</p> <p><b><u>Farm Swartkoppies No. 296 JQ</u></b></p> <p>Portions: 1, 4, 6, 9,10, 11, 14, 15, 21, 24, 26, 27, 28, 30, 36, 37, 39, 43, 44, 45, 54, 55, 58, 59, 60, 61, 62, 63, 64, 67, 70, 72, 73, 77, 78, 79, 80, 81, 82, 83, 84, and 85.</p> |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Date          | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
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|     |                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |               |        | <p>Properties RE4. RE5, Portions 7, 8, 10, 15, 19, 20, 22, 23, 24, 25, 26, 27, 32 is owned by the SCPA. Portions 59, 67, 77, 80 is owned by Mr Barnard. There are additional properties in which landowners have been confirmed. AvDE utilises formal title deeds in the confirmation of landowners.</p> <p><b>EMPr</b></p> <p>Once the mining commences the EMPr will be developed. This EMPr is based on mitigation measures recommended by specialists in their field. The inclusion of specialist in mitigation measures development ensures maximization of mitigation measures and minimization of impact.</p>                                                                                                                                                                                                                        |
| 9   |                          | <p>I have a strong objection as Schapkraal beneficiary to the current process flow of the published notice of the Environmental authorisation process for SCHAAPKRAAL prospecting rights. Meaningful engagement and consultation with our CPA have not been conducted, and as custodians of our Ancestors' land or land owners, we must protect our heritage site. Dictatorships will not be tolerated on Schapkraal farms. We urge you to halt the process until proper consultation is done. Sibanye Stillwater must recognise rights of Indigenous People or community of Schapkraal CPA that is grounded in a set of other fundamental rights of</p> <p>Indigenous Peoples, such as their right to self-determination, the right to control and use ancestral lands and resources as stipulated on the conducted IRMA Audit requirements.</p> <p>My deepest concern regarding the blatant shown by Sibanye Stillwater and Alta van Dyk Corporate Group in publishing the notice of the Environmental authorisation process for SCHAAPKRAAL prospecting rights application for inclusion Into WESTERN PLATINUM (PTY) LTD MINING RIGHT without the authorization and consultation of the Schaapkraal CPA.</p> <p>As per NEMA act, it is imperative that the affected community or landowners are consulted before any planning can proceed. It is</p> | 8 August 2024 | Email  | <p>Thank you for your email. The Schaapkraal CPA were notified of the proposed project on the 8 July 2024. On the 11 July, AvDE provided further information to Mr Mooketsi Motepe and indicated that AvDE can avail themselves for a meeting to discuss the project further.</p> <p>A meeting was held on the 8 August 2024 with yourself and the Schaapkraal CPA. It is AvDE's understanding that your email dated 8 August @ 8.12 was compiled prior to the meeting held on the same day @10:00 at Sibanye Stillwater K3 Concentrator.</p> <p>The comments and concerns raised during the meeting will be documented and shared with all attendees. Proof of communication with the Schaapkraal CPA will be provided with the minutes.</p> <p>The Schaapkraal CPA will be informed of any other engagements on the proposed project.</p> |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                         | Date         | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|-----|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|--------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                          | <p>essential that proper consultation and authorization are obtained to ensure the rights and interests of the community are respected. I urge you to rectify this situation immediately and engage in meaningful consultation with the Schaapkraal CPA.</p> <p>Hope you hear from you soon at the earliest convenience.</p>                                                    |              |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 10  |                          | <p>Please share the maps and boundaries of the two farms that you have indicated.</p> <p>As we share the boundaries with those farms including hectares which is earmarked for mining.</p> <p>Lastly indicate whether the mine will be open cast, incline or vertical shaft.</p> <p>And how was consultation done to inform the affected stakeholders including landowners.</p> | 27 July 2024 | Email  | <p>Thank you for your email. Your details have been included on the project database and you have been registered as an Interested and Affected Party. You will be informed of any project updates moving forward.</p> <p>Below is a response to your questions as provided on your email dated 27 July 2024.</p> <p><b><u>Project Description</u></b></p> <p>Sibanye Stillwater Western Platinum Limited (WPL) has a Prospecting Right in place on various properties on the Farms Zwartkoppies and Schaapkraal. Kindly refer to the attached Property Map which provides details of the properties.</p> <p>It is the intention of Sibanye Stillwater Western Platinum Limited, to apply to the Department of Mineral Resources and Energy to include the Prospecting Right Area (as shown on the Attached Map) into their WPL Mining Right (NW30/5/1/2/2/106 MR).</p> <p>The proposal is for Sibanye Stillwater Western Platinum Limited (WPL) to undertake underground mining in these areas, as Mining extraction from the K4 Shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal and Zwartkoppies Prospecting Right area is conceptually proposed to start in 2038 (underground mining).</p> <p><b><u>Public Participation</u></b></p> <p>Public Participation has been undertaken in line with Regulation 41 of the Environmental Impact Assessment Regulations 2014 (as amended). The Public Participation process is on-going, and the following has been undertaken this far:</p> <ol style="list-style-type: none"> <li>1. A newspaper advertisement was placed in the Rustenburg Herald on the 17 July 2024 advertising the availability of the</li> </ol> |

| Nr.                                           | Organisation/Commentator | Comment                                  | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |              |          |                  |                          |            |                 |                           |          |          |                                               |           |                                          |
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|                                               |                          |                                          |      |        | <p>Draft BAR for public comment. The advert was placed in both English and Tswana.</p> <ol style="list-style-type: none"><li>2. Distribution of Background Information Document's ("BID") electronically via email to the competent authority, commenting authorities, adjacent landowners and all identified stakeholders was undertaken on 08 July 2024</li><li>3. Hand delivery of Background Information Documents on the 8 July 2024. These were to land occupiers within the project area. This was dependant on accessibility at the time of distribution.</li><li>4. Placing site notices on site and within close proximity of the site. Site notices were both in English and Tswana.</li><li>5. Sending out Notification Letters via registered mail to Landowners.</li><li>6. Notifying the ward councillor and the Schaapkraal Communal Property Association</li><li>7. Sending out emails to registered Interested and Affected parties notifying them on the availability of the Draft Basic Assessment Report</li><li>8. Sending out SMSs to registered Interested and Affected parties notifying them on the availability of the Draft Basic Assessment Report</li></ol> <p><b><u>Availability of the Draft Basic Assessment Report</u></b></p> <p>The Draft basic Assessment Report is currently available for public and Commentary Authority review from the 18 July until 19 August 2024. The report can be accessed electronically on the following website: <a href="https://altavandykenvironmental.co.za/">https://altavandykenvironmental.co.za/</a> or Click on <a href="http://ulwazi.datafree.co/z">http://ulwazi.datafree.co/z</a> for FREE now.</p> <p>Hard copies of the report are also available at the follow venues:</p> <table><tr><th>Public Place</th><th>Locality</th><th>Physical Address</th></tr><tr><td>Rustenburg Local Library</td><td>Rustenburg</td><td>153 Smit Street</td></tr><tr><td>K4 Shaft Security Offices</td><td>Marikana</td><td>Marikana</td></tr><tr><td>Alta van Dyk Environmental Consultants Office</td><td>Midstream</td><td>9 Mount Sherman Crescent Midlands Estate</td></tr></table> | Public Place | Locality | Physical Address | Rustenburg Local Library | Rustenburg | 153 Smit Street | K4 Shaft Security Offices | Marikana | Marikana | Alta van Dyk Environmental Consultants Office | Midstream | 9 Mount Sherman Crescent Midlands Estate |
| Public Place                                  | Locality                 | Physical Address                         |      |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |              |          |                  |                          |            |                 |                           |          |          |                                               |           |                                          |
| Rustenburg Local Library                      | Rustenburg               | 153 Smit Street                          |      |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |              |          |                  |                          |            |                 |                           |          |          |                                               |           |                                          |
| K4 Shaft Security Offices                     | Marikana                 | Marikana                                 |      |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |              |          |                  |                          |            |                 |                           |          |          |                                               |           |                                          |
| Alta van Dyk Environmental Consultants Office | Midstream                | 9 Mount Sherman Crescent Midlands Estate |      |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |              |          |                  |                          |            |                 |                           |          |          |                                               |           |                                          |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Date              | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|-----|--------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|--------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 11  |                          | As owner WM37/36/5/1 Ged 7 Swartkoppies 296 JQ, I would like to be included and given clarity about prospective plans. Please contact me via email and explain what the purpose of this form is. I have received mixed correspondence from my renters and neighbours and need clarity about the plans.                                                                                                                                                                                                                                                                                                                     | 16 July 2024      | Email  | <p>Thank you for your email and participation. Sibanye Stillwater Western Platinum Limited (WPL) has a Prospecting Right in place on various properties on the Farms Swartkoppies and Schaapkraal. Kindly refer to the attached Property Map which provides details of the properties.</p> <p>It is the intention of Sibanye Stillwater Western Platinum Limited, to apply to the Department of Mineral Resources and Energy to include the Prospecting Right Area (as shown on the Attached Map) into their WPL Mining Right (NW30/5/1/2/2/106 MR).</p> <p>The proposal is for Sibanye Stillwater Western Platinum Limited (WPL) to undertake underground mining in these areas, as Mining extraction from the K4 Shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal and Swartkoppies Prospecting Right area is conceptually proposed to start in 2038 (underground mining).</p> <p>Alta van Dyk Environmental Consultants (Pty) Ltd has been appointment as the independent Environmental Assessment Practitioner to undertake the Environmental Authorisation and Public Participation Process. The Draft Basic Assessment Report has been compiled and available for comment from the 18 July until the 19 August 2024. The report can be accessed electronically on the following website: <a href="https://altavandykenvironmental.co.za/">https://altavandykenvironmental.co.za/</a>.</p> |
| 12  |                          | <ol style="list-style-type: none"> <li>1) Please note that Red Graniti rehabilitated certain areas within the northern sections of Portions 18, 20, 21 and 23 of the farm Schaapkraal 292 JQ.</li> <li>2) It is recommended to minimise the surface disturbances within these areas.</li> <li>3) Please note that an old gravel pit exists on Portion 21 of the farm Schaapkraal 292 JQ.</li> <li>4) Please consider using the soil/rock/gravel during the excavations as backfill material to help improve the aesthetics of the surrounding environment. (The estimated size of the gravelpit is 2 hectares).</li> </ol> | 30 September 2024 | Email  | <p>The comments have been acknowledged by Alta van Dyk Environmental and will be considered by Western Platinum Limited when the mine plan is being developed.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Date          | Source                      | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
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| 13  |                          | Keragraph CC, represented by Andre and Deon Verster, holds a 50% share in Portion 70 of the Farm Zwartkoppies 296 JQ (affected property). Please register Deon Verster as Interested and Affected Party and forward all correspondence to <a href="mailto:vercor@mweb.co.za">vercor@mweb.co.za</a> .                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 16 July 2024  | Email                       | <p>Thank you very much for your email. AvDE acknowledges your request and the correct contact details will be added to the database.</p> <p>You will be informed of all project updates.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 14  |                          | <p>The SCPA were not engaged on the proposed project. The news of the project came through via sms's but not directly to the SCPA even though they are the custodians of the Schaapkraal 292 JQ Farm. This meeting shall be noted as a formal objection to the proposed project. It does not make sense that the community of Wonderkop were informed of this proposed project, but the SCPA was not.</p> <p>As the SCPA is objecting the project, the project should be placed on hold until an agreement has been reached because they were not involved or consulted.</p> <p>There should be meaningful engagement with the SCPA and why bring external people to come and discuss such projects with us.</p> <p>There should be transparent engagements for everyone to agree upon. A newspaper advert should have not been placed without consultation with the SCPA. The broader community was informed before the SCPA</p> <p>The Schaapkraal community has been excluded and not considered as part of the SS initiatives.</p> | 8 August 2024 | Focus Group Meeting Minutes | <p><b><u>NEMA EIA Regulations (this application)</u></b></p> <p>The legislated obligation in terms of the proposed project is acknowledged. The Basic Assessment Process has been undertaken in terms of the NEMA EIA Regulations (2014). Other than the potential impacts associated with the biophysical environment, the EIA Regulations makes provision for consultation with Interested and Affected Parties as well as landowners. The public participation process has been undertaken in line with Regulation 41 of the EIA Regulations.</p> <p><b><u>Public Participation</u></b></p> <p>The following has been undertaken to date:</p> <ol style="list-style-type: none"> <li>1. A newspaper advertisement was placed in the Rustenburg Herald on the 17 July 2024 advertising the availability of the Draft BAR for public comment. The advert was placed in both English and Tswana.</li> <li>2. Distribution of Background Information Document's ("BID") electronically via email to the competent authority, commenting authorities, adjacent landowners and all identified stakeholders was undertaken on 08 July 2024</li> <li>3. Hand delivery of Background Information Documents on the 8 July 2024. These were to land occupiers within the project area. This was dependant on accessibility at the time of distribution.</li> <li>4. Placing site notices on site and within close proximity of the site. Site notices were both in English and Tswana.</li> <li>5. Sending out Notification Letters via registered mail to Landowners.</li> <li>6. Notifying the ward councillor and the Schaapkraal Communal Property Association</li> <li>7. Sending out emails to registered Interested and Affected parties notifying them on the availability of the Draft Basic Assessment Report</li> <li>8. Sending out SMSs to registered Interested and Affected parties notifying them on the availability of the Draft Basic Assessment Report</li> <li>9. Focus Group meeting on the 8 August 2024. A follow up meeting held on the 27 August 2024.</li> <li>10.</li> </ol> <p><b><u>Project Scope</u></b></p> <p>No surface and underground mining infrastructure is proposed as part of this application. This application entails the incorporation of the</p> |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
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|     |                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |      |        | <p>Prospecting Right into the WPL Mining Right due to the requirement of the MPRDA.</p> <p>Surface infrastructure and underground mining requires thorough investigation into site-specific conditions and are necessary to evaluate how the required mining and surface infrastructure might affect the environment. In the instance where no surface infrastructure is required, or underground mining will be taking place, the undertaking of project specific specialist studies would not alter the outcome or provide additional value as there are no components to be taken into consideration for impact quantification.</p> <p>The Draft Basic Assessment Report has provided a comprehensive description of the baseline environment of the proposed study area. This baseline environment will remain unchanged in the incorporation of the Prospecting Right into the Mining Right. There are no components identified to possibly cause an impact. Therefore, this process is deemed an administrative process in securing a Prospecting Right into a mining right as mining extraction from the K4 shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal prospecting area is conceptually considered to start in 2038 (14 years from now). This will extend the LOM of Sibanye Stillwater with over 30 years.</p> <p>Once the mine plan has progressed to such a manner in which supporting infrastructure might be required these will need to be authorised prior to their commencement - this process will require the undertaking of relevant specialist studies.</p> <p><u>Social and Labour Plan (SLP)</u></p> <p>The SCPA is recognised in accordance with the laws of the Republic and Sibanye Stillwater will work with the SCPA to cement their relations and since their beneficiaries reside in some villages, it is the view of Sibanye Stillwater that they do benefit from their programs and initiatives. The Lease agreement/Surface Rental that will be entered into by parties will further provide that commitment thereof.</p> |
|     |                          | <p>A meeting was held with SS Executives in 2023 to discuss the requirements of the SCPA. It is quite clear that even though the requirements of the SCPA were clearly discussed and agreed upon, the SCPA were still not informed through SS or AvDE about the proposed project. The SCPA further advised that SS should go back to the minutes of the meeting because during the meeting SS indicate that they are not mining on Farm Schaapkraal. The SCPA alleges that at the time of the meeting that SS knew about the project but did not discuss this</p> |      |        | <p>SS confirms that a meeting was held on the 7 November 2023 with Marikana Operations CED. The meeting was scheduled as per the request of the SCPA to:</p> <ul style="list-style-type: none"> <li>• Introduce the SCPA new committee</li> <li>• Re-establish the relationship with Sibanye Stillwater</li> <li>• Enquire about Sibanye-Stillwater's plan to mine in the Schaapkraal property.</li> <li>• To ensure that the Schaapkraal beneficiaries benefit from the property.</li> </ul> <p>AvDE has been appointed in terms of Regulation 12 of the NEMA EIA Requirements (2014) as amended to undertake the Basic Assessment and Public participation Process.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|     |                          | <p>with them. Engagement with SS was undertaken in 2023, there was no mention of prospecting or the proposed project. Can SCPA even trust SS. SS has refused to engage with the SCPA. SS is now knocking on their door; they are willing to open but tell them what you are willing to bring with.</p> <p>The tailings dust directly affects the Schaapkraal Community. What about the safety risks should Tailings Facility TD 5, 6 and 8 burst? The affected community will be Schaapkraal.</p> |      |        | <p></p> <p><b><u>Dust Monitoring</u></b></p> <p>Dust mitigation is done in accordance with the EMPR. Continuous dust monitoring taking place as per monitoring programme and within affected communities. Dust complaints managed in line with the complaint procedure.</p> <p><b><u>Tailings Dams</u></b></p> <p>Currently all Sibanye-Stillwater tailings dams are in a sound condition and are operated in accordance with best engineering practices. There are currently no unacceptable risks associated with their operation, thus ensuring the safety and stability of the surrounding communities and environment. If any risks related to the tailings dams are identified, they are addressed and resolved immediately to maintain safety and compliance with best practice.</p> <p>Sibanye-Stillwater, as a responsible miner, is committed to:</p> <ul style="list-style-type: none"> <li>• Applying industry best-practices aligned with applicable legislation, the Global Industry Standard for Tailings Management (GISTM), International Council on Mining and Metals (ICMM) Guidelines, and relevant technical guidelines</li> <li>• Continuously monitoring all their tailings dams closely</li> <li>• Ensuring effective water level management with due consideration to the effects of climate change</li> <li>• Engaging with impacted communities during the life cycle of the tailings dam</li> <li>• Ensuring robust internal &amp; external review processes and designs by professional engineers and reviews by independent tailings review boards</li> </ul> <p><b><u>Dam Break Analysis</u></b></p> <ul style="list-style-type: none"> <li>• An officially appointed Engineer on Record (EoR) conducts a dam breach assessment and determines the consequence classification</li> <li>• Warning sirens installed around the dam as well as in the affected communities</li> </ul> |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                      | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
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|     |                          |                                                                                                                                                                              |      |        | <ul style="list-style-type: none"> <li>An Emergency Preparedness and Response Plan (EPRP) has been prepared for each dam with emergency contact details of community heads and first responders – these have been prepared in collaboration with local authorities to mitigate harm against people, environment and infrastructure</li> <li>Trigger Action Response Plans (TARPs) have been prepared by our EoR which details the responsibilities for various individuals should a catastrophic TSF failure were to occur</li> <li>Evacuation routes and assembly points – for SSW employees and contractors working on the dams as well as assembly points within the community have been identified</li> <li>Education of community on general TSF awareness and emergency preparedness</li> <li>External mock drills with municipality and first responders simulating a failure</li> <li>Vulnerability assessments in all communities in which we operate</li> <li>A signed Memorandum of Understanding (MOU) with Gift of Givers for Humanitarian Aid and Search &amp; Rescue efforts</li> <li>A signed Memorandum of Understanding (MOU) with local/district municipality <ul style="list-style-type: none"> <li>Bojanala Platinum District Municipality – signed on 22 November 2022</li> <li>Rustenburg Local Municipality – signed 8 November 2023</li> <li>Madibeng Local Municipality – 20 July 2022</li> </ul> </li> </ul> <p>Sibanye Stillwater's conformance disclosure and fact sheets (with dam breach maps) are available on their website:</p> <p><a href="https://www.sibanyestillwater.com/sustainability/environment/tailings-management/">https://www.sibanyestillwater.com/sustainability/environment/tailings-management/</a></p> |
|     |                          | It is evident that the SCPA is always left out and not informed as a community, eg the Tailings Plan and safety assessments, Schaapkraal was not included in SS initiatives. |      |        | <p>The following has been undertaken in terms of Stakeholder engagements:</p> <ul style="list-style-type: none"> <li>Local radio station interviews – Bojanala FM, Mafisa FM</li> <li>Community notices handed out at community meetings (translated into local vernac)</li> <li>Community Engagement Forums (CEF) – Tailings dam standing agenda item</li> <li>Community training on TSFs and emergencies by an external independent party – Mariette Liefferink (FSE)</li> <li>Environmental forums – tailings dam awareness presentation</li> <li>Local newspaper articles on tailings dams</li> <li>Ulwazi data free platform</li> <li>Schools' awareness program on tailings dam safety – where schools within the Area of Inundations were identified and visited. During</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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|     |                          |                                                                                                                                                                                                                                                                                                    |      |        | <p>these visits Sibanye-Stillwater played animations and shared comic strips on Tailings Dams safety</p> <ul style="list-style-type: none"> <li>School engagements took place at the following schools (amongst many others): <ul style="list-style-type: none"> <li>Boikagong Primary School</li> <li>Tlhotheletsang Primary</li> <li>Kana Primary</li> <li>Photsaneng Primary</li> <li>Mfidikoe Primary</li> </ul> </li> <li>Vulnerability assessments and household surveys were completed in Marikana Operations - with the permission of the local leadership representatives at Wonderkop, a concession was made for 5 fieldworkers from the Segwaelane and Khamatwana areas to assist the Wonderkop Team with the fieldwork</li> <li>Appointment of an external social specialist to setup a CERT (community emergency response team) comprising of 5 community members (some of which are from Wonderkop Community)</li> <li>Wonderkop community leaders assisted in selecting CERT members – this included a member from SCPA who transported the CERT members</li> <li>Engagements also took place with traditional leaders and other community members from Tlapa, Maumong, Rankelenyane &amp; Mabitse. These members also visited the Karee 3 TSFs in 2023</li> <li>Site visits in June 2023 took place at the TSF which included community members from Photsaneng, Nkaneng, Boitekong, Ikemeleng, Sunrise Park, Kana, Mfidikwe and Popo Molefe</li> </ul> <p>It will be Sibanye-Stillwater pleasure to provide a community engagement session on Tailings with the SCPA</p> <p><b><u>Prospecting Right</u></b></p> <p>Western Platinum (Pty) Ltd (WPL) is the holder of a prospecting right under DMRE reference NW30/5/1/1/2/12331 PR (“Schaapkraal PR”) over the farm Schaapkraal 292 JQ and the farm Zwartkoppies 296 JQ in the magisterial district of Rustenburg in the North-West province measuring 4174.1424 ha in extent.</p> <p>The Prospecting Right on the farm Schaapkraal and Zwartkoppies was awarded to WPL a subsidiary of Lonmin on 7 June 2006 for a period of 5 years ending 6 June 2011 (PR 287//2006PR). This Prospecting Right was renewed for a further 3 years commencing 17 April 2015 ending 16 April 2018. Due to the requirements of the MPRDA,</p> |
|     |                          | Clarity was required on the date the Prospecting Right was issued, because the SCPA indicated that they have not given consent for any drilling to be undertaken on their properties. Details of the Public Participation undertaken for the Prospecting Right must be made available to the SCPA. |      |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|     |                          | The SCPA required clarity on when the renewal application was undertaken and why the SCPA was not consulted. The was no communication on the drilling activities and the SCPA will not accept it, if there are                                                                                     |      |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

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|     |                          | no benefits to the community. Currently drilling is being undertaken on the boarder of Schaapkraal and Zartkoppies farm. The SCPA advised that no machines shall be put on their properties without their permission. As a community they require recognition. |      |        | <p>WPL lodged a new application for the Prospecting Right on 3 April 2018 prior to the existing Prospecting Right expiring. The Prospecting Right application lodged on 3 April 2018 was approved on 22 August 2019 ending 21 August 2022 for a period of 3 years.</p> <p>In June 2019, Sibanye Stillwater acquired the entire capital share of Lonmin Plc including the Schaapkraal and Zwartkoppies Prospecting Rights.</p> <p>WPL as a subsidiary of Sibanye Stillwater applied for the renewal of the Right on 27 May 2022 which was granted on 28 November 2023 ending 27 November 2026 for a period of 3 years.</p> <p>No drilling has been undertaken on the Schaapkraal 292 JQ since 2014</p> <p>The 2023 application supports the inclusion of this existing Prospecting Right to the existing WPL adjacent Mining Right (NW 106 MR).</p> <p><b><u>Public Consultation Process (2018)</u></b></p> <p><b><i>Database</i></b></p> <p>The Existing I&amp;AP database was used as provided by SS for the area of influence. This database was updated as far as possible to reflect existing ward councillors and municipality representatives The Social performance team assisting with I&amp;AP identification and the distribution of information.</p> <p><b><i>Site Notices</i></b></p> <ul style="list-style-type: none"> <li>• Indicating the availability of the Draft BAR for comment <ul style="list-style-type: none"> <li>○ Period</li> <li>○ Places where document can be obtained</li> <li>○ Who to contact for additional information</li> </ul> </li> <li>• Tlapa Community</li> <li>• Marikana Community Centre</li> </ul> <p><b><i>Advertisements</i></b></p> <ul style="list-style-type: none"> <li>○ Brits Post – 16 March 2018</li> <li>○ Brits Post – 20 April 2018</li> <li>• Indicating the availability of the Draft BAR for comment</li> <li>• Period</li> <li>• Places where document can be obtained</li> <li>• Who to contact for additional information</li> </ul> <p><b><i>Notification letters</i></b></p> <p>Notification letters were e-mailed or posted to I&amp;APs on the database that has provided valid e-mail and postal addresses – 16 April 2018</p> <p>SMS notifications were provided to people with cell number were possible around the availability of the documentation.</p> <p><b><i>BA in public domain</i></b></p> |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                            | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
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|     |                          |                                                                                                                                                                                                                                                                                                    |      |        | <p>The Basic Assessment Report was made available in the public domain for a period of 30 calendar days – 23 April 2018 to 25 May 2018. Placement at the Marikana Public Library, Marikana Police Station, Lonmin WPL LPD Offices and website.</p> <p>For the Schaapkraal Communal Property Association, Mr Moss Rasogo (Chairperson at that time) were the main contact that was notified of the application process via sms notification. Victor Tseka and Elize Swart form SS in person liaised with Mr Moss Rasogo with regards to the prospecting activities such as continual seismic surveys and drilling.</p> <p><b><u>Prospecting Dilling to date and Compensation</u></b></p> <p><b><i>2010 - SCPA</i></b></p> <ul style="list-style-type: none"> <li>• Site visit <ul style="list-style-type: none"> <li>◦ 20 April 2010 with Moss Rasugu and Mr Michael Maledu</li> </ul> </li> <li>• Seismic Survey <ul style="list-style-type: none"> <li>◦ Meeting with the SCPA on the 11 June 2010 with SCPA representative H.P Mamogopodi</li> </ul> </li> <li>• Exploration boreholes <ul style="list-style-type: none"> <li>◦ Meeting held with the Schaapkraal Farmers on 4 June 2010</li> </ul> </li> </ul> <p><b><i>2011</i></b></p> <ul style="list-style-type: none"> <li>• WPL made contributions to equipment for the SCPA</li> </ul> <p><b><i>2013 and 2014</i></b></p> <ul style="list-style-type: none"> <li>• Consent form completed on 24 June 2024 to access and drill boreholes on Portion 19 of the Farm Schaapkraal 292JQ</li> <li>• Consent form completed on 29 November 2024 to access and drill boreholes on Portion 22 of the Farm Schaapkraal 292JQ</li> <li>• Compensation paid for boreholes</li> </ul> <p>No drilling has been undertaken post 2014</p> <p>WPL holds a valid mining right as well as the surface rights across the K4 area. With the sinking of the K4 shaft in the early 2000's, the relevant stakeholders were consulted at the time and the EMPr was issued in 201</p> <p>This application entails the incorporation of the Prospecting Right into the WPL Mining Right due to the requirement of the MPRDA. Surface infrastructure and underground mining requires thorough investigation into site-specific conditions and are necessary to evaluate how the required mining and surface infrastructure might affect the environment In the instance where no surface infrastructure is required, or underground mining will be taking place, the undertaking of project specific specialist studies would not alter the outcome or provide</p> |
|     |                          | When the K4 shaft was sunk, they were not consulted. But communities further away is benefiting. SS to start doing engagement correctly.                                                                                                                                                           |      |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|     |                          | There are always allegations and even the presentation states that the surface will not be impacted on. This is a speculation. Whether mining is on surface or below ground, the SCPA land is at risk. If the SCPA is put at risk they need to know how will they benefit. There are allowable and |      |        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

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|     |                          | acceptable levels to any identified risk and there needs to be a social responsibility.                                                                                                                                                                                                                                                                                                                                                                                                                                                |      |        | <p>additional value as there are no components to be taken into consideration for impact quantification.</p> <p>The DBAR has provided a comprehensive description of the baseline environment of the proposed study area. This baseline environment will remain unchanged in the incorporation of the Prospecting Right into the Mining Right<br/>There are no components identified to possibly cause an impact.</p> <p>This process is deemed an administrative process in securing a Prospecting Right into a mining right as mining extraction from the K4 shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal prospecting area is conceptually considered to start in 2038 (14 years from now).<br/>Two years prior to this (2038) WPL will commence with the pre-feasibility studies in order to confirm the mine plan and production profile for the Schaapkraal mining block<br/>During this study period, all surface infrastructure requirements such as ventilation shafts will be determined<br/>Once the mine plan has been finalised and surface infrastructure confirmed, a regulatory approval process will be undertaken in support of these activities.<br/>Once the mine plan has progressed to such a manner in which supporting infrastructure might be required these will need to be authorised prior to their commencement - this process will require the undertaking of relevant specialist studies. During this period specialist studies (such as hydrology, hydrogeology, soils, air quality, terrestrial biodiversity, noise, soci-economic, visual, ecotourism) will be undertaken supporting the feasibility mine and infrastructure plan as to quantify possible impacts.<br/>With the regulatory approval process that is required Public Participation will be undertaken in line with NEMA requirements.</p> |
|     |                          | What is the SCPA going to benefit from the project if SS will be mining their land underground. If for some reason this is allowed, then SS needs to start engaging with the SCPA on the benefits that can be realized. The mine is holding SCPA at ransom by stating that mining will only be undertaken on 2038. Why must the community wait for 14 years to benefit. There are many other companies doing mining, the SCPA can engage with other companies to undertake mining on their land and they don't have to wait until 2038 |      |        | <p>When a Prospecting Right is converted to a Mining Right, it allows the Mining Right holder to plan the future mine and the required surface infrastructure. Normally a surface landowner is consulted should his surface rights be impacted upon by surface infrastructure during which period SS will discuss compensation. Currently the relationship with SS is not defined as SS is not the Mineral Rights holder and the extent of surface infrastructure not determined.</p> <p>When a company applies for a mining right, it is required to submit a number of documents on its plans to mine, which the DMRE then uses to assess whether the potential mine is viable. One of these documents is a Social and Labor Plan (SLP).</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

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|     |                          | <p>The SCPA sees this proposal for mining in 2038 as a ploy from SS. As the laws will be changed by then with very little to no recognition to the landowners. Hence the benefit will only be for SS and not the Landowner. Hence SCPA advised that SS must determine how the relationship with the SCPA is going to work moving forward.</p> <p>In terms of community benefits, these are not realized by the Schaapkraal community. There has been requests to include the people of Schaapkraal in the SS procurement spending. But SS has not considered such but rather use SME's from Sonop. The Moletane Trust is also benefiting and getting employment. SS is engaging with the incorrect people.</p> <p>The SCPA stated that they are verbally communicating their concerns on this project there is no need for them to provide a written objection. They understand that there will be minutes of the meeting. As the SCPA received the BID, they are commenting on this as the landowner.</p> <p>SS cannot use their land through the DMRE. SCPA are the landowners, and they need to make a decision. DMRE is the most beneficial of such projects as the officials are benefiting only. They deny the poorest people access to their ancestral land. And SCPA as the community were forcefully removed from the land during the apartheid system. Underground or surface SCPA hold the rights to the land, the DMRE should not think that they own the mineral.</p> <p>The Farm of Zwartkoppies was part of the Farm Schaapkraal that was taken away from the community as part of the apartheid system. SCPA are disputing this and Zwartkoppies must come back to them as this is their ancestral land</p> |      |        | <p>Social and labour plans set out how the company intends to share some of the benefits that flow from mining. The SPL elements include the following:</p> <ul style="list-style-type: none"> <li>• Human Resources Development:</li> <li>• Employment Equity</li> <li>• Mine Community Development</li> <li>• Procurement and Enterprise and supplier Development</li> <li>• Housing and Living conditions</li> <li>• Downscaling and Retrenchments</li> </ul> <p>Once a company is awarded a mining right, the social and labour plan they submitted becomes a binding legal document. Therefore, if WPL does not convert their prospecting right to a mining right, it cannot include the SCPA in the Social and Labor Plan</p> <p>In terms of the Moletsane Development Trust, these relationships are supported by Legal processes that have unfolded over time.</p> <p>All comments provided during the meeting have been minuted and included in the Comment and Response Report. The minutes of the meeting will be issued to all attendees.</p> <p>The comment has captured in this Comments and Response Report and submitted to the DMRE for consideration in the decision-making process.</p> <p>In accordance with the Mineral and Petroleum Resources Development, No. 28 of 2002 (MPRDA), the State is the custodian of all Mineral Rights and therefore administer these resources. Only the state can authorise the exploitation of mineral resources through the Minister of the DMRE. Any person who wishes to exploit mineral resources is required to apply for and obtain the appropriate right under the MPRDA.</p> <p>Owners of surface rights do not have claim to the minerals found on, in or under the surface of his or her land. If surface infrastructure is situated on surface, then lease agreements can be entered into at that stage as undertaken previously with the SCPA in 2010.</p> <p>According to the tile deeds obtained the following properties are owned by the SCPA, Portions 7, 8, 10, 15,19, 20, 22, 23, 24, 26, 26, 27, 32 and the Remaining Ext of Portion 4 and 5 of the Farm Schaapkraal 292 JQ. Any disputes in terms of land ownership will need to be lodged with the Department of Agriculture, Land Reform and Rural Development.</p> |

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| 15  |                          | <p><b>Introduction and Background</b></p> <p>This objection to the mining right application (Ref. No. NW30/5/1/2/2/106 MR.) and the incorporation of prospecting right (Ref No. NW30/5/1/1/2/12331 PR), is submitted by the Schaapkraal Communal Property Association (SCPA) on behalf of the beneficiaries of the local community and align themselves with this objection. The list of objectors is included herein under List of Objectors.</p> <p>The preparation of this objection is based upon information supplied by the objectors (in particular the SCPA, who is the land owner). The consultant appointed by Sibanye Stillwater Western Platinum Limited (WPL), Alta Van Dyk Environmental Consultants (Pty) Ltd (AvDE), is also hereby required to furnish the SCPA with a copy of the Environmental Management Program for this undertaking at their earliest convenience.</p> <p>The objection assumes that the information provided by the objectors is truthful and honest.</p> | 15 August 2024 | Email  | <p>The objection has been noted by Alta van Dyk Environmental and Western Platinum Limited. The objection together with the letter will be captured in the comments and response report which will be submitted with the Final Basic Assessment Report which will be submitted to the DMRE for consideration in the decision-making process.</p> <p>According to the tile deeds obtained the following properties are owned by the SCPA, Portions 7, 8, 10, 15,19, 20, 22, 23, 24, 26, 26, 27, 32 and the Remaining Ext of Portion 4 and 5 of the Farm Schaapkraal 292 JQ.</p> <p>This process is for the inclusion of the Prospecting Right into the WPL Mining Right is deemed to be the current undertaking. An EMP was made available to the SCPA on the 23 August 2024 via email. An electronic copy (provided on a memory stick) was made available to the SCPA on the 27 August 2024.</p> |

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|  | <p>The existing legislative framework in South Africa widely defines the environment as encompassing both social and biophysical elements and makes it clear that consideration of the environment includes, as a priority, the needs of present and future generations and communities. It is therefore imperative that any development proposal, such as this application, must pay due respect to the overall socio-economic needs of the society in which it would be located as well as the biophysical environment.</p> <p>It should be noted that the Section 1 of the MPRDA, in terms of which this application is administered gives effect to the definition of the environment as such is defined under NEMA and which is as follows:</p> <p><i>“environment” means the surroundings within which humans exist and that are made up of -</i></p> <p><i>(i) the land, water and atmosphere of the earth;</i></p> <p><i>(ii) micro-organisms, plant and animal life;</i></p> <p><i>(iii) any part or combination of (i) and (ii) and the interrelationships among and between them; and</i></p> <p><i>(iv) the physical, chemical, aesthetic and cultural properties and conditions of the foregoing that influence human health and wellbeing;”</i></p> <p>It is also to be noted that Section 2(h) of the MPRDA refers to the over-riding requirement for application to be consistent with Section 24 of the Constitution and which states:</p> <p><i>“Everyone has the right -</i></p> <p><i>(a) to an environment that is not harmful to their health or well-being; and</i></p> <p><i>(b) to have the environment protected, for the benefit of present and future generations,</i></p> |  | <p><b><u>NEMA EIA Regulations (this application)</u></b></p> <p>The legislated obligation in terms of the proposed project is acknowledged. The Basic Assessment Process has been undertaken in terms of the NEMA EIA Regulations (2014). Other than the potential impacts associated with the biophysical environment, the EIA Regulations makes provision for consultation with Interested and Affected Parties as well as landowners. The public participation process has been undertaken in line with Regulation 41 of the EIA Regulations.</p> <p><b><u>Public Participation</u></b></p> <p>The following has been undertaken to date:</p> <ol style="list-style-type: none"> <li>11. A newspaper advertisement was placed in the Rustenburg Herald on the 17 July 2024 advertising the availability of the Draft BAR for public comment. The advert was placed in both English and Tswana.</li> <li>12. Distribution of Background Information Document’s (“BID”) electronically via email to the competent authority, commenting authorities, adjacent landowners and all identified stakeholders was undertaken on 08 July 2024</li> <li>13. Hand delivery of Background Information Documents on the 8 July 2024. These were to land occupiers within the project area. This was dependant on accessibility at the time of distribution.</li> <li>14. Placing site notices on site and within close proximity of the site. Site notices were both in English and Tswana.</li> <li>15. Sending out Notification Letters via registered mail to Landowners.</li> <li>16. Notifying the ward councillor and the Schaapkraal Communal Property Association</li> <li>17. Sending out emails to registered Interested and Affected parties notifying them on the availability of the Draft Basic Assessment Report</li> <li>18. Sending out SMSs to registered Interested and Affected parties notifying them on the availability of the Draft Basic Assessment Report</li> <li>19. Focus Group meeting on the 8 August 2024. A follow up meeting held on the 27 August 2024.</li> <li>20.</li> </ol> <p><b><u>Project Scope</u></b></p> <p>No surface and underground mining infrastructure is proposed as part of this application. This application entails the incorporation of the Prospecting Right into the WPL Mining Right due to the requirement of the MPRDA.</p> <p>Surface infrastructure and underground mining requires thorough investigation into site-specific conditions and are necessary to evaluate how the required mining and surface infrastructure might affect the environment. In the instance where no surface infrastructure is required, or underground mining will be taking place, the undertaking of project specific specialist studies would not alter the outcome or provide</p> |
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|  |  | <p><i>through reasonable legislative and other measures that - (i) prevent pollution and ecological degradation;</i></p> <p><i>(ii) promote conservation; and</i></p> <p><i>(iii) secure ecologically sustainable development and use of natural resources while promoting justifiable economic and social development."</i></p> <p>Furthermore, Section 37 of the MPRDA makes it a requirement of the application to be consistent with the principles of integrated environmental management as they are stated under Section 2 of the NEMA.</p> <p>It is quite clear therefore that the Applicant and his appointed consultant have a legislated obligation to meaningfully and fully consider the rights and needs of affected parties and the Schaapkraal community. This objection sets out just some of the instances in which the application fails to consider such rights of affected parties and the environment itself.</p> <p>It is the objectors' opinion that the infrastructure of the area is poorly suited to accommodate the heavy vehicular traffic associated with such mining operations and they accordingly register their strong objection. The community of the SCPA is currently rebuilding its infrastructure to accommodate envisaged development in the area.</p> |  |  | <p>additional value as there are no components to be taken into consideration for impact quantification.</p> <p>The Draft Basic Assessment Report has provided a comprehensive description of the baseline environment of the proposed study area. This baseline environment will remain unchanged in the incorporation of the Prospecting Right into the Mining Right. There are no components identified to possibly cause an impact. Therefore, this process is deemed an administrative process in securing a Prospecting Right into a mining right as mining extraction from the K4 shaft mining block is expected to mature in 2040, and thus access into the Schaapkraal prospecting area is conceptually considered to start in 2038 (14 years from now). This will extend the LOM of Sibanye Stillwater with over 30 years.</p> <p>Once the mine plan has progressed to such a manner in which supporting infrastructure might be required these will need to be authorised prior to their commencement - this process will require the undertaking of relevant specialist studies.</p> <p><u>Social and Labour Plan (SLP)</u></p> <p>The SCPA is recognised in accordance with the laws of the Republic and Sibanye Stillwater will work with the SCPA to cement their relations and since their beneficiaries reside in some villages, it is the view of Sibanye Stillwater that they do benefit from their programs and initiatives. The Lease agreement/Surface Rental that will be entered into by parties will further provide that commitment thereof.</p> |
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|     |                          | <p>Infrastructural issues</p> <p>It is the objectors' opinion that the infrastructure of the area is poorly suited to accommodate the heavy vehicular traffic associated with such mining operations and they accordingly register their strong objection. The community of the SCPA is currently rebuilding its infrastructure to accommodate envisaged development in the area</p> <p><b>1. Consultation process</b></p> <p>The required consultation process is stipulated inter alia, in:</p> <ul style="list-style-type: none"> <li>- the MPRDA, Sections</li> <li>- the MPRDA Regulations, Sections 3</li> <li>- The Guideline for the compilation of a Scoping Report (DMR)</li> </ul> <p>The Guideline states under "A. Preamble" the following:</p> <p><i>"The scoping report contemplated in Regulation 49 is founded on the principle of consultation with interested and affected parties, which consultation process and its result is an integral part of the fairness process. The decision to grant a mining right cannot be fair if the administrator did not have full regard to precisely what happened during the consultation process in order to determine whether the consultation was sufficient to render the grant of the application procedurally fair.</i></p> <p><i>The State acknowledges the importance of the involvement of communities where mining is taking place at the earliest stages of applications for prospecting and mining rights and permits. This entails the communities being informed and consulted on any mining activities applied for by mining companies in their area"</i></p> |      |        | <p><b><u>Meaningful Engagement</u></b></p> <p><b>Prior to the 30 day legislated timeframe (early notification)</b></p> <ul style="list-style-type: none"> <li>• 8 July 2024: <ul style="list-style-type: none"> <li>○ Email notification to the Schaapkraal Communal Property Association inclusive of: <ul style="list-style-type: none"> <li>▪ Notification Letter</li> <li>▪ Background Information Document</li> <li>▪ These two documents provided details on the availability of the Draft Basic Assessment Report.</li> <li>▪ The email correspondence was sent to info@schaapkraalcpa.co.za. The email address was obtained from the Schaapkraal Communal Property Association website: <a href="https://www.schaapkraalcpa.co.za/">https://www.schaapkraalcpa.co.za/</a>. According to the website the email that was used is linked to the Chairman and the Deputy Chairman of the Schaapkraal Communal Property Association.</li> </ul> </li> </ul> </li> <li>• 9 July 2024: <ul style="list-style-type: none"> <li>○ Schaapkraal Community Property Association acknowledged receipt of the notification sent out by AvDE. The SCPA further requested the following: <ul style="list-style-type: none"> <li>▪ Additional information on the proposed project</li> <li>▪ To register as an Interested and Affected Party</li> <li>▪ Engage with AvDE via the mining subcommittee of the Association</li> </ul> </li> </ul> </li> <li>• 11 July 2024 <ul style="list-style-type: none"> <li>○ AvDE responded confirming receipt of the email on the 11 July 2024 and provided the following: <ul style="list-style-type: none"> <li>▪ Details of the proposed project</li> <li>▪ Property Map</li> <li>▪ Availability to meet and discuss the proposed project</li> </ul> </li> </ul> </li> </ul> |

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|     |                          | <p>The consultant, as per their Basic Assessment Process Pre-Application Consultation in their BID document, indicates a distinct lack of understanding of the local social context within this application and has, in a deliberate effort on their part as consultants, avoided meaningful engagement with the affected community and is contrary to Section E of the Department's Guideline on Consultation which states that, <i>"Consultation under the Act's provisions requires engaging in good faith to attempt to reach ... accommodation"</i> with landowners, affected parties and communities.</p> <p>The inappropriate manner in which the consultant and applicant is conducting this entire exercise has resulted in strong animosity from the SCPA and a suspicion of underhandedness on the part of the consultant and applicant</p> <p>Furthermore, the consultant has claimed to have been in contact with the secretary of the SCPA before the recorded initial contact via email on July 9<sup>th</sup> 2024. The consultant has been asked to provide proof of contact prior to July 9<sup>th</sup> 2024 and has so far failed to do so since the meeting that was held between the SCPA, the consultant and WPL on August 8<sup>th</sup> 2024. Minutes of the same meeting are still outstanding from the consultant as of writing of this objection.</p> <p>The objection by the SCPA to the manner in which this application is being handled is therefore registered again.</p> <p>b) Directly affected landowners<br/>It is important for the DMRE to note that this objection is strongly registered the SCPA and that further and more meaningful consultation should be considered by the applicant.</p> |      |        | <ul style="list-style-type: none"> <li>15 July 2024 <ul style="list-style-type: none"> <li>AvDE received telephonic communication from the Schaapkraal Community Property Association requesting an in-person meeting. The Association made a commitment to confirm suitable dates.</li> </ul> </li> </ul> <p><b>During the 30-day legislated timeframe</b></p> <ul style="list-style-type: none"> <li>30 July 2024 <ul style="list-style-type: none"> <li>AvDE followed up telephonically for a date for the meeting. The SCPA indicated that a community meeting will be held on Saturday (3 August 2024), whereby the project will be discussed and a suitable date for a meeting will be provided.</li> </ul> </li> <li>5 August 2024 <ul style="list-style-type: none"> <li>On the 5 August 2024, AvDE followed up with Association for a date of the meeting. The meeting was set up with the association for the 8 August 2024.</li> </ul> </li> <li>8 August 2024 <ul style="list-style-type: none"> <li>Meeting held with the SCPA.</li> </ul> </li> </ul> <p>An additional meeting was identified during 8 August 2024. The meeting was undertaken on the 27 August 2024.</p> <p>In addition, an extension of the legislated timeframe has been drafted for submission to the DMRE in an effort to extent the public engagement period in support of the application as to continue with meaningful engagement.</p> <p>As a team we have committed to maintaining a robust and effective engagement process with our stakeholders by allowing for additional face to face engagements in addressing concerns and providing transparency in available information and the intent of undertaking process. A key component of this commitment is the emphasis on ongoing dialogue which has been supported and which is essential for ensuring that our engagement remains relevant, responsive, and effective</p> <p>According to Regulation 39 (2) of the EIA Regulations, the Schaapkraal Communal Property Association were informed of the proposed project on the 8 July 2024 via the notification letter and email. As a landowner the SCPA were informed of the proposed project. On the 11 July AvDE sent out correspondence to the SCPA for a meeting to discuss the project further. It is important to note that these discussions were prior to the placement of the Draft Basic Assessment Report for public comment which was from the 18 July until the 19 August 2024.</p> <p>The Environmental Impact Assessment (EIA) Regulations are designed to guide the process of public consultation to ensure that environmental assessments are thorough, transparent, and inclusive. These regulations become the guidelines to EAPs in ensuring that public engagement is undertaken to the standard expected from the Regulatory Authority and</p> |

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|     |                          |                                                                                                                                                                                                                                                                                                                                                                                                               |      |        | as such have formed the guidelines under which this project's supporting public engagement has been undertaken. AvDE has been appointed as an independent Environmental Assessment Practitioner to undertake the Environmental and Public Participation Process.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
|     |                          | In support of this, it is important to note that the SCPA had a meeting with WPL's representatives on October 7 <sup>th</sup> 2023 and was informed that "they are just neighbours" by said representatives and could therefore not be included in any of their social programs (i.e. Marikana Renewal Project) and beneficiation (in their value chain) activities.                                          |      |        | SCPA as the landowner will be engaged further in the process of formalizing relations and Lease agreement in line with provisions of the law.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|     |                          | <p>a) <u>The "Community"</u></p> <p>Our community has <b>historically disadvantaged persons</b> of which, some live adjacent to and have farming activities on several portions of the farm (Schaapkraal 292 JQ). The community did not receive any notification of the application and have not been consulted in any way by the consultant prior to the initial engagement on July 9<sup>th</sup> 2024.</p> |      |        | <p>Our ability as EAPS to engage with stakeholders and share information is confined to the platforms and resources presently available to us at the time and is limited to existing databases (Emails, Sms's) and the placement of visual prompts such as newspaper adverts and site notices to promote additional stakeholder engagement.</p> <p>There is an opportunity in this instance in which there is an association (proxy to farm/property owners) present to enhance the effectiveness of communication by leveraging its established networks for the dissemination of information. This ensures that information is distributed efficiently, accurately, and consistently, while also facilitating valuable stakeholder feedback.</p> <p>In this instance, AvDE made initial contact with the SCPA via a notification letter on the 8 July 2024 as the association that carries the proxy for the property owners.</p> <p>In addition to this, the following was undertaken to ensure that the community as a whole is notified to prompt involved and register</p> <ul style="list-style-type: none"> <li>• Email notification to the ward councillor of ward 31</li> <li>• Placement of site notices in both English and Tswana</li> <li>• Placement of the newspaper advert in both English and Tswana in the Rustenburg Herald</li> <li>• SMS notification to I&amp;APs on the database</li> <li>• The use of the Sibanye Stillwater data free app Ulwazi.</li> <li>• Availability of the Draft Basic Assessment Report</li> </ul> <p>All the above created equal opportunity for any interested and affected part to register and to become involved. Effective engagement requires not only our commitment as EAPs to communication but also the active willingness of stakeholders to participate.</p> |

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|     |                          | <p>The broader community have many ancestral graves located on the subject and adjacent lands and which have been the cause of significant community tensions in the past. The SCPA align themselves with this tabled objection in their opposition to the mining proposal</p>                                                                                                                                                                                                                                                                                                           |      |        | <p>AvDE and WPL recognises the importance of features with cultural and heritage significance.</p> <p>No surface and underground mining infrastructure is proposed as part of this application. This application entails the incorporation of the Prospecting Right into the WPL Mining Right due to the requirement of the MPRDA.</p> <p>Surface infrastructure and underground mining requires thorough investigation into site-specific conditions and are necessary to evaluate how the required mining and surface infrastructure might affect the environment. In the instance where no surface infrastructure is required, or underground mining will be taking place, the undertaking of project specific specialist studies would not alter the outcome or provide additional value as there are no components to be taken into consideration for impact quantification.</p> <p>Therefore, two years prior to this (2038) WPL will commence with the pre-feasibility studies in order to confirm the mine plan and production profile for the Schaapkraal mining block. During this study period, all surface infrastructure requirements such as ventilation shafts will be determined. Once the mine plan has been finalised and surface infrastructure confirmed, a regulatory approval process will be undertaken in support of these activities. During this period a Heritage Impact Assessment will be undertaken supporting the feasibility mine and infrastructure plan as to quantify possible impacts. With the regulatory approval process that is required Public Participation will be undertaken in line with NEMA requirements. In addition, there is opportunity for the local community members to participate in the heritage features identification due to their indigenous knowledge. This will also assist in the surface layout development.</p> |
|     |                          | <p>Biophysical information</p> <p>a) CBA and conservation status</p> <p>Our farm, Schaapkraal 292 JQ, is not a Critical Biodiversity Area (CBA) but has plans to continue with their farming activities as well as agritourism plans on the farm and tourism activities at the dam (including the majority of portions mentioned in the BID). As it is well known in the Witwatersrand mining area, studies have shown that underground mining activities can and will affect the surface directly above the underground mining in the form of sinkholes and the like in the future.</p> |      |        | <p><b><u>CBA</u></b></p> <ul style="list-style-type: none"> <li>• North West Biodiversity Sector Plan <ul style="list-style-type: none"> <li>◦ The North-West Department of Rural, Environment, and Agricultural Development (“READ”), as custodian of the environment in the North-West, is the primary implementing agent of the Biodiversity Sector Plan. Chapter 7 of the Draft Basic Assessment Report provides details of the conservation status in terms of the North West Biodiversity Sector Plan.</li> </ul> </li> <li>• The 2015 Biodiversity Action Plan <ul style="list-style-type: none"> <li>◦ The Farm specific conditions were confirmed through the Biodiversity Action Plan.</li> </ul> </li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |

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|     |                          | <p>We want to ensure, as the SCPA, that our land is preserved for future generations and for them to benefit from it. The detrimental and harmful effects of mining (whether surface or underground) on the environment and the health of communities in mining areas are well documented in South Africa. To this day, communities in South Africa, especially in mineral rich areas, are suffering the long lasting effects of said activities.</p> <p>The CBA status of a site considers a wide range of important biological and ecological criteria (beyond simply the conservation status of the vegetation on the site). Therefore, consideration of only the conservation status of the vegetation itself is a very poor and misguided surrogate of the site's real conservation value. The envisaged settlement of the land by the beneficiaries of the SCPA, as well as tourism activities will be affected negatively by the proposed activities.</p> <p><b>b) <u>Fauna</u></b></p> <p>Regulation 49(1)(b) requires that the SR must "describe the existing status of the environment...". The SCPA requires for the SR (if any) to comply with this legislation.</p> <p><b>c) <u>Vegetation</u></b></p> <p>The BID doesn't address any impact on the vegetation or provide any supporting documentation for the impact to the vegetation by the envisaged activities.</p> <p><b>d) <u>Hydrology</u></b></p> <p>The subject site for this application constitutes an area earmarked for activities as listed above by the SCPA. The impact on the dam has not been documented by the consultant or the</p> |      |        | <p>According to READ the 2015 Biodiversity Sector Plan is the applicable dataset to be used, hence the 2015 Biodiversity Action Plan is still seen as applicable.</p> <p>According to the tile deeds obtained from the deeds office, the following properties are owned by the SCPA, Portions 7, 8, 10, 15,19, 20, 22, 23, 24, 26, 26, 27, 32 and the Remaining Ext of Portion 4 and 5 of the Farm Schaapkraal 292 JQ. According to the dataset (2015), Portions 7, 8, 15,16,27 and Remaining Ext of Portion 4 and 5 of the Farm Schaapkraal 292 JQ fall within a Critical Biodiversity Area 1</p> <p><b><u>Impacts on a CBA Area</u></b></p> <p>The importance of a CBA is acknowledged by AvDE; however, it is important to note that the current application does not include any surface infrastructure. The current application made to the DMRE is for the incorporation of the prospecting right into the mining right in order to comply with the requirements of the MPRDA. Based on the current predicted mine planning, the K4 mining block is only expected to mature in 2040. Therefore, two years prior to this (2038) Sibanye Stillwater will commence with the pre-feasibility studies in order to confirm the mine plan and production profile for the Schaapkraal mining block. During this study period, all surface infrastructure requirements such as ventilation shafts will be determined. Once the mine plan has been finalised and surface infrastructure confirmed, a regulatory approval process will be undertaken in support of these activities. During this period specialist studies (such as hydrology, hydrogeology, soils, air quality, terrestrial biodiversity, noise, soci-economic, visual, ecotourism) will be undertaken supporting the feasibility mine and infrastructure plan as to quantify possible impacts. With the regulatory approval process that is required Public Participation will be undertaken in line with NEMA requirements.</p> <p><b><u>The effects of underground mining and sinkholes</u></b></p> <p>A sinkhole is a hole in the ground that forms when water dissolves surface rock. Often, this surface rock is limestone, which is easily eroded, or worn away, by the movement of water. People can create sinkholes when building roads or other types of construction. Altering land in these ways can weaken the underlying rock and make it more susceptible to sinkholes. Sinkholes vary from shallow holes about one meter deep, to pits more than 50 meters deep. The ore bodies that will eventually become mining targets are located between 1.3 and 1.7km beneath the surface of Schaapkraal. There is no plan to disturb the surface or sink a new shaft to reach these areas as the mine will utilize existing underground infrastructure to access the ore bodies. Even when mining and creating voids below surface, the rock types mined here are igneous rocks which are very competent and not altered in any way like limestone. Rock</p> |

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|     |                          | <p>client nor has there been any engagement with the SCPA in this regard.</p> <hr/> <p><i>e) Conclusion</i></p> <p>The proposed mining area is located on semi-transformed (agriculture) land and is not located in a Critical Biodiversity Area. However, significant impact on flora and fauna are anticipated. Significant ecological impacts will be registered should the mining proposal proceed</p> <p>The Interested &amp; Affected Parties do not agree with the BID as presented. The BID understates the environmental sensitivity and value of the affected environment and this appears to be a deliberate intention <i>of the consultant in order to serve the interests of the applicant.</i></p> <hr/> <p><b>Socio-economic issues</b></p> <p>There will definitely be negative socio-economic effects on subject, adjacent and nonadjacent properties and such are likely to be significant. As an example, the existing farm land (used for crop farming) would be disturbed by the mining operation and derives its value from years of nourishment and management and such would be lost through disturbance by the mining operation and could very likely result in the failure of the crop farming operation with a consequential loss of employment.</p> <p>The BID is superficial and unfounded and is therefore rejected and objected to by the objectors as it fails to acknowledge the resultant negative socio-economic impacts (present and future) that will be delivered from converting the prospecting right to the mining right. No benefits</p> |      |        | <p>engineering strategies are currently effectively employed and will ensure that no subsidence or slumping takes place. Therefore, the probability of mining induced sinkholes are unlikely due to the depth of mining and the competent rock types below the surface. Mining has taken place in the area since the 1930s with no record of any sinkholes forming.</p> |

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|     |                          | <p>whatsoever are mentioned with regards to the SCPA.</p> <p><b>Tourism potential</b></p> <p>The SCPA economy is mainly driven from the agricultural, tourism and recreational sectors” but the BID fails to recognize the contribution that tourism makes to the current socio-economic status as well as the potential for future sustainable tourism opportunities. Rather the BID motivates for the need for the mining right to be granted and doesn’t account for the time period they mention for the community to wait for them.</p> <p>The proposed mining would undoubtedly have a significant negative effect on the current and potential tourism and related activities of the area and which is founded upon the areas natural beauty and biodiversity. Such effects will translate into negative economic impacts for the area and its inhabitants.</p> <p>Should the application progress it will be imperative for the applicant to appoint an independent specialist to undertake a full visual impact assessment. It will also be necessary to undertake an independent socio-economic study in order to quantify the anticipated impacts and to test the economic benefits for the SCPA.</p> <p>There is no local need for the proposed mining project if the SCPA’s beneficiaries do not benefit financially from this undertaking. The proposed mine would not constitute sustainable development for the community. The SCPA registers their strongest objection to the application based upon the likely significant negative socio-economic impacts that would result from approval of this application.</p> |      |        |          |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Date | Source | Response                                                                                                                                                                                                                                                                                                                   |
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|     |                          | <p><b>Heritage and archaeological issues</b></p> <p>The site proposed for the mine contains many indistinct graves of the ancestors of families of the broader community some of whom also farm on immediately adjacent farms. The issue of these old graves has resulted in heated community friction in the past and such issue has not been attended to in the BID.</p> <p>There is also significant value from a tourism potential aspect as the SCPA has earmarked the entire farm for educational, tourism and farming activities. The proposed mining would negatively affect the existing and potential cultural and tourism aspect of the area and the application is objected to on these grounds.</p> <p><b>Infrastructural issues</b></p> <p>It is the objectors' opinion that the infrastructure of the area is poorly suited to accommodate the heavy vehicular traffic associated with such mining operations and they accordingly register their strong objection. The community of the SCPA is currently rebuilding its infrastructure to accommodate envisaged development in the area</p> <p><b>Other applications required</b></p> <p>It will likely be necessary for the applicant to undertake the following additional applications:</p> <ol style="list-style-type: none"> <li>1. Authorization under NEMA (several "listed activities" will be applicable).</li> <li>2. Water Use License</li> <li>3. Waste Management License</li> </ol> |      |        | <p>These applications can only be undertaken once the DMRE makes a decision on the inclusion of the Prospecting Right into the Mining Right. Should Sibanye Stillwater require further approval for any planned infrastructure or associated activities a separate approval process will be required to be undertaken.</p> |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Date | Source | Response                                                                                                                                                                                                                                                                                                                                         |
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|     |                          | <p>4. Land Use approval</p> <p><b>8. CONCLUSION.</b><br/> On account of the subject site's very high value for the SCPA, this application, if granted, will undoubtedly result in an unacceptably high socio-economic impact and environmental damage if the beneficiaries of the SCPA are excluded from any discussions and their inputs disregarded. It is therefore our considered opinion that, even based on the limited, but significant, information at our disposal, the Minister will be obliged to refuse this application since it will fail to be able to meet the standard set out under Section 23(1)(d) of the MPRDA which states that,</p> <p>"Subject to subsection (4), the Minister must grant a mining right if... the mining will not result in unacceptable pollution, ecological degradation or damage to the environment;"</p> <p>Section 2(2) of NEMA states that, "Environmental management must place people and their needs at the forefront of its concern, and serve their physical, psychological, developmental, cultural and social interests equitably." It is also our view that the subject application fails to meet muster with this legislated requirement since it has failed to properly engage with the affected community and landowners.</p> <p>The unconditional objection of the parties listed under List of Objectors to the incorporation of the prospecting right Ref No. NW30/5/1/1/2/12331 PR into the mining right Ref No. NW30/5/1/2/2/106 MR by the applicant, Sibanye Stillwater Western Platinum Limited, is hereby recorded.</p> |      |        | <p>The objection has been noted by Alta van Dyk Environmental and Western Platinum Limited. The objection together with the letter will be captured in the comments and response report which will be submitted with the Final Basic Assessment Report which will be submitted to the DMRE for consideration in the decision-making process.</p> |

| Nr. | Organisation/Commentator | Comment                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Date           | Source              | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
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|     |                          | All rights reserved unconditionally.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                |                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 16  | <div></div>              | <p>The SCPA requested SS, as a courtesy to the landowner, to inform the landowner prior to the engagement of 3rd party consultants on a regulatory process to a broader audience. AvDE informed the SCPA of the project instead of SS and this places SCPA in a difficult position when community members enquire about the project.</p> <p>The new SCPA leadership was introduced to SS in a meeting held in November 2023 and documentation from the old leadership was not carried over to the new leadership. The SCPA leadership also requested SS to provide their correct contact details to 3rd party contractors as the contact information on the current SCPA website is no longer valid</p> | 27 August 2024 | Focus Group Meeting | <p>Public Participation was undertaken in terms of the NEMA EIA regulations and landowner notification was undertaken on the 8 July 2024. Based on the discussion during the meeting the SCPA indicated that they responded on 9 July 2024 based on the site notices that were placed out and not on receipt of the email.</p> <p>The request of passing the correct contact details was acknowledged by SS.</p>                                                                                                                                                                                                       |
|     |                          | The SCPA enquired around the existing relationships that SS has with the Bapo ba Mogale community as well as the Moletsane Development Trust and whether the similar benefits will realise for them as landowners.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                |                     | <p>These relationships are supported by a legal process that will unfold in time.</p> <ul style="list-style-type: none"> <li>When a Prospecting Right is converted to a Mining Right, it allows the Mining Right holder to plan the future mine and the required surface infrastructure. Normally a surface landowner is consulted should his surface rights be impacted upon by surface infrastructure during which period SS will discuss compensation. Currently the relationship with SS is not defined as SS is not the Mineral Rights holder and the extent of surface infrastructure not determined.</li> </ul> |
|     |                          | The SCPA indicated that they are more interested in a longer-term monetary gain rather than a lease agreement and that the SCPA will put forward a proposal on how they see the relationship to work. The SCPA indicated that should there be no monetary gain for the association, they will not approve this application and continue to object the inclusion of the Prospecting Right into the Mining Right for future underground mining.                                                                                                                                                                                                                                                           |                |                     | SS recommended to the SCPA that the correct legal and business structures must be in place allowing for future potential business relations to unfold. SS explanation is that consultation process is distinct to a demand to do business with SS and encouraged SCPA to make the submissions in writing to issues relation to the process.                                                                                                                                                                                                                                                                            |
|     |                          | The SCPA indicated that they feel very strongly that based on the fact they own the surface rights, that they should also own the mineral                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                |                     | The comment has captured in this Comments and Response Report and submitted to the DMRE for consideration in the decision-making process.                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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|     |                          | rights regardless of what the South African Legislation states.                                                                                           |                   |        | <p>In accordance with the Mineral and Petroleum Resources Development, No. 28 of 2002 (MPRDA), the State is the custodian of all Mineral Rights and therefore administer these resources. Only the state can authorise the exploitation of mineral resources through the Minister of the DMRE. Any person who wishes to exploit mineral resources is required to apply for and obtain the appropriate right under the MPRDA.</p> <p>Owners of surface rights do not have claim to the minerals found on, in or under the surface of his or her land. If surface infrastructure is situated on surface, then lease agreements can be entered into at that stage as undertaken previously with the SCPA in 2010.</p> |
|     |                          | SCPA indicated that they currently have investors and are unable to wait for 2038 to benefit from SS from mining underground (below their surface rights) |                   |        | The Schaapkraal mining block will extend the life of mine for K4 shaft, and that the mineral reef is located approximately 1.6 km below the Schaapkraal farm. It is more economical to mine from the existing mining operations than to sink a whole new shaft which will take approximately 10 and a lot of capital.                                                                                                                                                                                                                                                                                                                                                                                              |
| 17  |                          |                                                                                                                                                           | 27 September 2024 | Email  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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| 18  |                          | As you are aware, Kudu Granite Marikana have two long established granite mines on Schaapkraal.<br>We would require a co-operation agreement to ensure that our mines are protected.<br>Please could you advise the necessary persons or advise who we should liaise with. | Email | 5 September 2024 | Trust you are well. Sibanye Stillwater is proposing a meeting with Kudu Granite Marikana.<br><br>It would be a team's meeting. Please advise on two tentative dates and time for the meeting.                                                                                                                                                                                                                                                                |
| 19  | ([REDACTED])             | It's a wonderful initiative                                                                                                                                                                                                                                                |       | Ulwazi           | Thank you for your comments, your details have been included on the Interested and Affected Party Database and you will be informed on any project developments.                                                                                                                                                                                                                                                                                             |
| 20  |                          | I would like the mining to give opportunity to youths who are unemployed to see how they going to cooperate with the project                                                                                                                                               |       | Ulwazi           | When a company applies for a mining right, it is required to submit a number of documents on its plans to mine, which the DMRE then uses to assess whether the potential mine is viable. One of these documents is a Social and Labor Plan (SLP).<br>Social and labour plans set out how the company intends to share some of the benefits that flow from mining. The SPL elements include the following:                                                    |
| 21  |                          | I would like to know as a youth in Marikana how I make sure that my company can actively participate in this project                                                                                                                                                       |       | Ulwazi           | <ul style="list-style-type: none"> <li>• Human Resources Development:</li> <li>• Employment Equity</li> <li>• Mine Community Development</li> <li>• Procurement and Enterprise and supplier Development</li> <li>• Housing and Living conditions</li> <li>• Downscaling and Retrenchments</li> </ul> <p>Once a company is awarded a mining right, the social and labour plan they submitted becomes a binding legal document. Therefore, if WPL does not</p> |

| Nr. | Organisation/Commentator                                                            | Comment                                                                                                                                                                                                                                                      | Date | Source | Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
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|     |                                                                                     |                                                                                                                                                                                                                                                              |      |        | convert their prospecting right to a mining right, the benefits of the host community cannot be realised.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 22  |    | The project from areas that are currently Under land claims and according to the law, no developments can be done prior to settlements finalisation. We are not aware of the project and we as landowner need a special consultative meeting to be on board. |      | Ulwazi | <p>Our ability as EAPS to engage with stakeholders and share information is confined to the platforms and resources presently available to us at the time and is limited to existing databases (Emails, Sms's) and the placement of visual prompts such as newspaper adverts and site notices to promote additional stakeholder engagement.</p> <p>There is an opportunity in this instance in which there is an association (proxy to farm/property owners) present to enhance the effectiveness of communication by leveraging its established networks for the dissemination of information. This ensures that information is distributed efficiently, accurately, and consistently, while also facilitating valuable stakeholder feedback.</p> <p>In this instance, AvDE made initial contact with the SCPA via a notification letter on the 8 July 2024 as the association that carries the proxy for the property owners.</p> <p>Focus group meetings were held with the association on the 8 and 27 August 2024.</p> <p>In terms of a land claim, it is important to note that no surface infrastructure is planned in terms of the proposed project. Should there be surface infrastructure planned for the future, then Sibanye Stillwater will engage with the relevant landowner.</p> |
| 23  |    | I would like to be part of the project any position I will accept                                                                                                                                                                                            |      | Ulwazi | Thank you for your comments, your details have been included on the Interested and Affected Party Database and you will be informed on any project developments.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 24  |  | This project must continue, because it will help people                                                                                                                                                                                                      |      | Ulwazi | Thank you for your comments, your details have been included on the Interested and Affected Party Database and you will be informed on any project developments.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |